

Digest of Principles

Every cross-cutting doctrine tagged in the corpus, classified by subject. · 6 September 2026

338 PRINCIPLES	751 CASE-APPLICATIONS	472 TAGGED CASES	1983 CASES IN CORPUS	13 LEADING (10+ CASES)	17 SUBJECT CLASSES
--------------------------	---------------------------------	----------------------------	--------------------------------	----------------------------------	------------------------------

Drawn from the **principle_tags** field of the lean per-case records (tag · application · lead authorities · pins). 472 of 1983 summaries currently carry tags; the remaining lean records have not yet been tagged and do not appear here. Each principle is filed once, under the subject that best describes it. A principle applied in ten or more cases is marked leading. Within each class, principles are ordered by the number of case-applications, then alphabetically. An A–Z index is at the end.

 Leading — 10 or more cases  Extensive — 5 to 9 cases  Recurring — 2 to 4 cases  Isolated — a single case

How to read a card: the title is the kebab-case tag, rendered in prose. The paragraph is the richest *application* recorded for that tag. Chips are the cases that carry it, with year and court.

Contents (principles · case-applications)

A. Statutory architecture, vires & interpretation	17 · 25	J. Unauthorised use (s.126) & assessment	37 · 105
B. Duty to supply & access to a connection	14 · 33	K. Theft (s.135) & Chapter VIII of the Code	16 · 31
C. Arrears, transferee & occupier liability	23 · 43	L. Recovery of assessment, citations & the 1958 Act	17 · 24
D. Insolvency interface — IBC, SICA & sick units	14 · 19	M. Fora — CGRF, Ombudsman, Inspector & Lok Adalat	25 · 67
E. Premises, site, estimates, feeders & lines	16 · 22	N. Appeals (s.127) & statutory remedies	15 · 23
F. Security, load, tariff & regulatory economics	30 · 46	O. Writ, alternative remedy & public-law doctrines	44 · 102
G. Metering	20 · 32	P. Criminal process, compounding & s.482	11 · 57
H. Billing, payment, instalments & limitation	24 · 97	Q. Adjacent & miscellaneous	5 · 8
I. Disconnection, reconnection & restoration	10 · 17		

A. Statutory architecture, vires & interpretation 17 principles · 25 case-applications

How the Code is read against the Act: hierarchy, retrospectivity, headings, and ultra vires.

A-01 Supply code regulation cannot exceed parent act s.174 overriding 4 cases

The Supply Code is subordinate legislation framed under the Electricity Act; by s.174 the Act overrides and the Code cannot travel beyond the Act's assessment limits.

LEAD AUTHORITIES *Pankaj Kumar v. Kanpur Electric Supply Company and others; Vijay Pal Singh & Another v. Dakshinanchal Vidyut Vitran Nigam Ltd & others*

SCJ-227 · Vijay Pal Singh & Another 2010 **All HC**

SCJ-228 · Vijay Pal Singh 2010 **All HC**

SCJ-698 · Raj Kumar 2013 **All HC**

SCJ-678 · Sri Dauji Cold Storage Pvt Ltd And A... 2018 **All HC**

A-02 Clause heading not a limit on substantive scope 3 cases

Clause 6.5(b)'s heading ('Disputed Bills and Arrears') does not confine its scope; a supplementary bill grounded in a disputed meter reading is a disputed bill within the clause — resonates with the marginal-heading-not-an-aid-to-construction principle already tracked in this corpus (SCJ-059/060, *Chandler v. DPP* line).

SCJ-083 · Mohamdabad Cold Storage Private Ltd.... 2007 All HC

SCJ-086 · Mother India Refrigeration Industrie... 2007 All HC

SCJ-153 · Mohd. Sagir 2014 All HC

A-03 Statute prevails over supply code 3 cases

Where the Supply Code's assessment-rate provision is discrepant with the governing statute (Section 126(6)), the statute prevails.

LEAD AUTHORITIES *Sri Bhagwan Gupta v. Kanpur Electricity Supply Company Ltd.*; *Pankaj Kumar v. Kanpur Electric Supply Company and others*

SCJ-640 · Venus Stone Crushing Co. Thru' Partn... 2010 All HC

SCJ-059 · Modern Rice Mill 2011 All HC

SCJ-698 · Raj Kumar 2013 All HC

A-04 Code liberally construed for consumer 2 cases

Supply Code regulations, being terms dictated by a monopoly supplier, are to be liberally interpreted in favour of the consumer; load-enhancement agreements are treated as continuations of the initial agreement.

SCJ-035 · Jharkhand State Electricity Board & ... 2021 SC

SCJ-328 · Ghanshyam 2026 All HC

A-05 Code confined to licensee consumer service obligations 1 case

Clause 2.2(av) of the 2002 Code, and a Division Bench citation of 2009 (2) AWC 1189, cannot be used to defeat summoning under ss.135/138. The Code details licensee-consumer service obligations and has no relevance to the criminal prosecution.

SCJ-637 · Joginder Singh 2010 All HC

A-06 Law as of application date governs 1 case

A load-reduction application is governed by the Code as it stood when the application was made (here the unamended Clause 4.49 accepting a bond or any instrument), not by a later amendment introducing a bank-guarantee-only requirement; 'instrument' is wide enough to include an affidavit.

SCJ-246 · L.M.L. Ltd. 2009 All HC

A-07 Legal fiction carried to logical end 1 case

When the Supply Code / Section 126 deems assessed energy to be consumed, the fiction must be given full effect and the assessed units treated as sales.

SCJ-010 · BSES Rajdhani Power Ltd. 2022 SC

A-08 Marginal heading not aid to construction 1 case

A clause's marginal heading (e.g. 'Defective Meters' for Clause 5.6) does not restrict its substantive scope; general principle of statutory construction applied to a Supply Code clause.

LEAD AUTHORITIES *Chandroji Rao v. CIT*; *Padmaraje R. Kadambande v. CIT*; *Guntaiah & Others v. Hambamma & Others*

SCJ-059 · Modern Rice Mill 2011 All HC

A-09 No retrospective operation of supply code clause 1 case

A Supply Code clause cannot be applied retrospectively to fasten liability arising from a disconnection that pre-dates the Code's coming into force.

SCJ-268 · Vijay Lakshmi 2013 HC

A-10 **Precedent under superseded provisions does not govern post 2005 code** 1 case

A judgment delivered under the provisions in force before the 2005 Code does not aid an applicant where the Code has since introduced a new mandatory requirement.

LEAD AUTHORITIES *Rajesh Kumar Gupta v. State of U.P.*

SCJ-236 · Iftakhar Ahsan 2014 **All HC**

A-11 **Sc precedent retrospective unless expressly prospective** 1 case

Reaffirms, in an electricity-penalty-circular context, the general rule that judicial precedent (including a Supreme Court ruling correcting a High Court's erroneous statutory/circular interpretation) applies retrospectively to pending disputes unless the deciding court expressly limits it to prospective operation.

LEAD AUTHORITIES *U.P. Power Corporation Ltd. v. Lohia Brass (P) Ltd.*; *Union of India v. Mohd. Ramzan Khan*

SCJ-128 · Chandra Mohan Goyal 2018 **All HC**

A-12 **Statutory contract silence does not bar statutory power** 1 case

General administrative-law doctrine (statutory power survives contractual silence, subject to the Indian Aluminium exception for express valid fetters) with potential cross-application to electricity tariff/circular-enhancement disputes in this corpus (cf. SCJ-128's retrospective-circular-application doctrine, SCJ-123's clause-enforcement holding).

LEAD AUTHORITIES *Indian Aluminium Co. v. Kerala State Electricity Board*; *State of Rajasthan v. J.K. Synthetics*

SCJ-134 · The State of Haryana & Ors. 2026 **SC**

A-13 **Statutory supply code supersedes administrative memorandum** 1 case

A statutory Electricity Supply Code (framed under the ERC's statutory mandate) overrides and supersedes a pre-existing administrative office memorandum on the same subject, from the Code's effective date, given the Code's statutory character versus the memorandum's mere administrative character — a useful precedent on the hierarchy between statutory Supply Code provisions and non-statutory licensee circulars/memoranda, complementing this corpus's Clause-precedence doctrine.

SCJ-137 · U.P. Avas Evam Vikas Parishad & Anr. 2011 **SC**

A-14 **Supply code not confined to s.50 subjects s.181 rulemaking** 1 case

The Supply Code is regulation-making under s.181 (and s.86(1) 'supply'), not limited to the subjects listed in s.50; fiscal/protective provisions are within power.

SCJ-255 · Suvidha Engineers India Ltd. 2009 **All HC**

A-15 **Supply code read as whole not piecemeal** 1 case

Provisions of the Supply Code must be construed together, in context, not in isolation — a specific clause (Clause 4.38(c)) cannot be relied upon divorced from the licensee's parallel obligations (Clause 4.36/6.15).

LEAD AUTHORITIES *Grasim Industries Ltd. v. Collector of Customs*; *Zameer Ahmed Latifur Rehman Sheikh v. State of Maharashtra*

SCJ-113 · Satya Narayan 2013 **All HC**

A-16 **Unilateral acceptance of successor code estops challenge to predecessor** 1 case

A party that unilaterally accepts a charge/obligation under a successor Supply Code cannot consistently dispute an analogous charge under the code's statutory predecessor for the same underlying reasons.

SCJ-137 · U.P. Avas Evam Vikas Parishad & Anr. 2011 **SC**

A-17 **Vires challenge requires pleaded foundation** 1 case

A challenge to the vires of a Supply Code clause (here Clause 4.3(f)(v), on the ground Directors fall outside the s.2(15) 'consumer' definition) cannot be entertained where raised only in oral rejoinder submissions without any foundation laid in the writ petition itself.

SCJ-090 · Narendra Singh Panwar 2023 All HC

B. Duty to supply & access to a connection 14 principles · 33 case-applications

Section 43, occupier and tenant connections, indemnity bonds, and mandamus to connect.

B-01 Clause 4.4 occupant connection on indemnity bond 11 cases

A tenant/occupier may obtain a new electricity connection via the Annexure 4.2 indemnity-bond route where the landlord withholds consent; this reinforces and extends the Clause 4.4 occupant-connection principle already tracked in this corpus (SCJ-085, Mohd. Ashfaq Khan) to the new-connection (not just restoration) context, and explicitly holds that landlord-consent refusal cannot be an absolute bar.

LEAD AUTHORITIES *Chandu Khamaru v. Nayan Malik*; *Smt. Sushama Chowdhary v. U.P. Power Corporation Ltd.*; *Chandu Khamaru v. Smt. Nayan Malik*; *Gaurav Sharma v. State of U.P. & 4 Others*; *Seema Mansoor v. U.P. Power Corporation Ltd.*

SCJ-115 · Seema Mansoor 2014 AII HC

SCJ-265 · Sushama Chowdhary 2014 AII HC

SCJ-190 · Mamta Tripathi 2015 AII HC

SCJ-1668 · Vijay Kumar Tiwari 2017 AII HC

SCJ-272 · Mohd. Rizvan 2023 AII HC

SCJ-212 · Deepak Jain 2023 AII HC

SCJ-558 · Procapitus Business Park Pvt. Ltd. 2024 AII HC

SCJ-085 · Mohd. Ashfaq Khan @ Ashfaq Khan 2025 AII HC

SCJ-342 · Uma Chauhan 2025 AII HC

SCJ-199 · Teena Sehgal 2026 AII HC

SCJ-299 · Lalit Kumar Tripathi 2026 AII HC

B-02 Duty to supply survives extinguishment of right to recover 4 cases

On extinguishment of the right to recover, if a duty to supply is cast under the Electricity Act, 2003, the licensee cannot escape performing that duty and must energise the connection.

LEAD AUTHORITIES *Isha Marbles v. Bihar State Electricity Board*; *West Bengal State Electricity Distribution Co. Ltd. v. Sri Vasavi...*

SCJ-681 · Trimurti Buildwell Pvt Ltd 2010 AII HC

SCJ-655 · Lakshmi Oil And Vanaspati Pvt. Ltd. 2010 AII HC

SCJ-270 · HSA Traders 2023 AII HC

SCJ-267 · S.K. Construction Co. 2023 AII HC

B-03 Landlord consent not required for tenant connection s.43 3 cases

Under the s.43 duty to supply to an owner or occupier, a tenant/occupier cannot be refused a new connection merely because the landlord objects or withholds consent.

LEAD AUTHORITIES *Chandu Khamaru v. Nayan Malik*

SCJ-904 · Abdul Waheed 2012 AII HC

SCJ-210 · Radhe Shyam Singh 2014 AII HC

SCJ-265 · Sushama Chowdhary 2014 AII HC

B-04 Occupier entitled to connection on indemnity bond 3 cases

A genuine occupier (including a family member in separate possession) has a statutory right under s.43(1) to a connection and may furnish an indemnity bond (Annexure 4.2) where the owner's NOC is unavailable; the bond only excludes trespassers/house-grabbers.

LEAD AUTHORITIES *Seema Mansoor v. U.P. Power Corporation*; *Chandu Khamaru v. Nayan Malik*; *Gaurav Sharma v. State of U.P.*; *Seema Mansoor v. U.P. Power Corporation Ltd.*

SCJ-027 · Gaurav Sharma 2018 AII HC

SCJ-033 · Husna Bano 2019 AII HC

SCJ-342 · Uma Chauhan 2025 AII HC

B-05 Occupier needs proof of occupancy plus indemnity bond Clause 4.4 2 cases

An indemnity bond under Clause 4.4 is not enough. The occupier must also furnish an occupancy certificate under Clause 4.4 read with Annexure 4.2. Until that is done, non-release of the connection is not contempt of a writ that directed supply only if formalities were completed. Same cluster as SCJ-249.

SCJ-249 · Dakshinanchal Vidyut Vitran Nigam Lt... 2016 AII HC

SCJ-338 · Jayant Singh 2025 AII HC

B-06 Owner consent precondition Clause 4.15vi bihar code 2 cases

Clause 4.15(vi) of the Bihar Supply Code makes the owner liable for a tenant's arrears only where the connection was given with the owner's consent; without proof of consent the clause cannot be invoked to deny a fresh connection.

SCJ-268 · Vijay Lakshmi 2013 HC

SCJ-269 · Ujala Kumar @ Ujala Singh 2014 HC

B-07 Landlord NOC refusal in dispute no bar to tenant connection 1 case

A connection cannot be declined to a tenant merely because the landlord refuses a no-objection certificate, especially in a landlord-tenant dispute.

SCJ-272 · Mohd. Rizvan 2023 All HC

B-08 Licensee duty to maintain supply and avoid imbalance 1 case

A licensee must maintain the requisite supply and not create a load imbalance; a technical complaint of over-loading is to be audited and decided by the competent authority after notice to affected parties.

SCJ-220 · Mohammad Rashid & Another 2014 All HC

B-09 Licensee performs installation consumer cannot self supply 1 case

Installation of new-connection infrastructure (within 500 m) is done by the licensee, whose estimate under Clause 4.6 includes laying-line/mains/material charges; the consumer pays but cannot insist on supplying/installing the equipment himself.

SCJ-201 · Madhu Rani Agrawal 2014 All HC

B-10 Mere signature on application is not consent 1 case

A mere signature of the owner on the tenant/lease-holder's connection application does not amount to consent unless expressed in such terms.

SCJ-269 · Ujala Kumar @ Ujala Singh 2014 HC

B-11 Occupier must be authorised 1 case

The right of a tenant/occupier to a connection under the Code presupposes authorised occupation; it does not extend to a person against whom an unstayed eviction decree operates. (Qualifies the tenant-occupier entitlement recognised in *Anand Kumar / SCJ-006*.)

LEAD AUTHORITIES *Anand Kumar v. State of U.P.*

SCJ-021 · Ashok Kumar Sharma & Another 2024 All HC

B-12 Owner consent mandatory for new connection Clause 4.4 1 case

A new connection to an occupier/tenant requires the owner's consent under Clause 4.4(a)(vi); absent that consent no mandamus to connect can issue.

SCJ-236 · Iftakhar Ahsan 2014 All HC

B-13 Pending private dispute no ground to deny supply 1 case

A pending private/ownership dispute between the applicant and third parties is not a ground to deny the owner/occupier his statutory right to supply under s.43.

SCJ-264 · Chandu Khamaru 2011 SC

B-14 S.43 duty to supply owner or occupier correlative right 1 case

Sections 42(1)/43(1) impose a duty to supply an owner or occupier on application and confer a correlative statutory right to obtain supply.

SCJ-264 · Chandu Khamaru 2011 SC

C. Arrears, transferee & occupier liability 23 principles · 43 case-applications

Who pays predecessor dues: premises charge, auction purchasers, landlords and directors.

C-01 Arrears run with the premises 13 cases

IMPORTANT QUALIFICATION: the K.C. Ninan arrears-run-with-premises doctrine (SCJ-037) is confined to ordinary/non-insolvency transfers; where the premises were acquired through an IBC liquidation auction and the licensee has itself submitted a claim to the Liquidator for the same dues, IBC s.238 overrides the Electricity Act/Supply Code first-charge provisions and the licensee's sole recourse is the IBC waterfall mechanism, not withholding a fresh connection.

LEAD AUTHORITIES *Dakshin Haryana Bijli Vitran Nigam Ltd. v. M/s Paramount Polymers Pvt. Ltd.*; *Isha Marbles v. Bihar State Electricity Board*; *Dakshin Haryana Bijli Vitran Nigam Ltd. v. Paramount Polymers (P) Ltd.*; *Paschimanchal Vidyut Vitran Nigam Ltd. v. DVS Steels & Alloys (P) Ltd.*; *Ahmedabad Electricity Co. Ltd. v. Gujarat Inns Pvt. Ltd.*; *Smt. Pawan Jha @ Priya Jha v. State of U.P.*

SCJ-099 · Paschimanchal Vidyut Vitran Nigam Lt... 2008 SC

SCJ-225 · Raman Ispat (Pvt.) Ltd. & Anr. 2009 All HC

SCJ-063 · Rayana Paper Board Industries Ltd. 2010 All HC

SCJ-031 · Haryana State Electricity Board 2010 SC

SCJ-012 · Chandra Prakash Gupta 2014 All HC

SCJ-229 · Soni Dwivedi 2016 All HC

SCJ-036 · Jitendra Kumar Gupta & Anr. 2017 All HC

SCJ-248 · Kalawati Rana 2017 All HC

SCJ-098 · Palika Towns LLP 2022 All HC

SCJ-037 · K.C. Ninan 2023 SC

SCJ-005 · Amir Ahmad 2025 All HC

SCJ-054 · Dharti Agro Industries Pvt. Ltd. 2025 All HC

SCJ-199 · Teena Sehgal 2026 All HC

C-02 Arrears follow premises not person fresh connection v. transfer 4 cases

A landmark synthesis of the Supreme Court's own arrears-transferee-liability line (*Isha Marbles*, *DVS Steels*, *Ahmedabad Electricity Co.*, *Hanuman Rice Mills*), crystallising that a fresh-connection applicant with no privity of contract is not liable for a previous occupant's arrears absent an express statutory/regulatory provision so authorising, distinguishing this from a mere transfer of an existing connection; a foundational precedent for this corpus's...

LEAD AUTHORITIES *Pashchimanchal Vidyut Vitran Nigam Ltd. v. DUS Steels & Alloys Pvt. Ltd.*; *Isha Marbles v. Bihar State Electricity Board*; *Paschimanchal Vidyut Vitran Nigam Ltd. v. DVS Steels & Alloys Pvt. Ltd.*; *Ahmedabad Electricity Co. Ltd. v. Gujarat Inns Pvt. Ltd.*; *Haryana State Electricity Board v. Hanuman Rice Mills, Dhanauri*

SCJ-225 · Raman Ispat (Pvt.) Ltd. & Anr. 2009 All HC

SCJ-127 · Special Officer, Commerce, North Eas... 2012 SC

SCJ-229 · Soni Dwivedi 2016 All HC

SCJ-248 · Kalawati Rana 2017 All HC

C-03 Electricity arrears not a charge transferee liable only under statutory rules 3 cases

Electricity arrears are not a charge on the premises; a transferee is liable for a predecessor's dues only where statutory rules or statutory conditions of supply so authorise.

LEAD AUTHORITIES *Isha Marbles v. Bihar State Electricity Board*; *Haryana State Electricity Board v. Hanuman Rice Mills*; *Paschimanchal Vidyut Vitran Nigam Ltd. v. DvS Steels & Alloys (P) Ltd.*

SCJ-681 · Trimurti Buildwell Pvt Ltd 2010 All HC

SCJ-655 · Lakshmi Oil And Vanaspati Pvt. Ltd. 2010 All HC

SCJ-268 · Vijay Lakshmi 2013 HC

C-04 Clause 4.3f co extensive liability not confined to private sale 2 cases

The Clause 4.3(f)(i) duty to find out and clear outstanding electricity dues to obtain a no-dues certificate is co-extensive on seller and purchaser and applies to auction/distress sales, not only private sales.

LEAD AUTHORITIES *Chandra Prakash Gupta v. State of U.P.*

SCJ-1317 · Anoop Goyal 2015 All HC

SCJ-271 · RKG Industries LLP 2023 All HC

C-05 Connection transfer requires clearance of arrears Clause 4.44 2 cases

A connection is transferred/mutated to a new holder under Clause 4.44 only after all arrears are cleared and formalities completed, by the Executive Engineer of the Division.

SCJ-196 · Ganga Dayal 2014 All HC

SCJ-174 · Meva Ram 2014 All HC

C-06 Electricity dues not automatically a secured interest 2 cases

Electricity dues are not automatically a 'secured interest'/first charge under the IBC merely by virtue of a Supply Code recovery-as-arrears-of-land-revenue mechanism; secured-creditor status depends on whether a security interest was actually created (by contract clause or operation of law) and, if so, the claim is processed within the s.53 waterfall, not outside/above the IBC.

LEAD AUTHORITIES *Textile Labour Association v. Official Liquidator*; *State Tax Officer v. Rainbow Papers Ltd.*

SCJ-152 · U.P. State Cement Corporation Ltd. (... 2007 All HC

SCJ-100 · Paschimanchal Vidyut Vitran Nigam Lt... 2023 SC

C-07 Arrears apportioned pro rata on subdivision 1 case

On a legal sub-division of a premises, outstanding electricity dues are divided pro-rata; a purchaser of a portion is liable only for that portion's share.

SCJ-007 · Anubhav Jaiswal 2014 All HC

C-08 Arrears bar is premises specific 1 case

The bar on a new connection for arrears attaches only to the specific premises in default, not to other portions of a building.

SCJ-006 · Anand Kumar 2023 All HC

C-09 Arrears follow premises not person ada allotment context 1 case

Extends the DVS Steels/Hanuman Rice Mills arrears-transferee-liability doctrine (SCJ-099) from private-sale/purchase contexts to a statutory development-authority (ADA) EWS-flat allotment, holding the two contexts are not meaningfully distinguishable; part of this corpus's broader arrears/occupant-liability cluster (SCJ-090, SCJ-098, SCJ-124).

LEAD AUTHORITIES *Paschimanchal Vidyut Vitran Nigam Ltd. v. DVS Steels & Alloys Pvt. Ltd.*

SCJ-125 · Pawan Jha @ Priya Jha 2011 All HC

C-10 Auction purchaser liable for predecessor dues as is where is 1 case

An auction purchaser buying on an "as is where is" basis is put to enquiry about, and takes the premises subject to, the erstwhile owner's outstanding electricity dues, which the licensee may recover from him.

LEAD AUTHORITIES *Telangana State Southern Power Distribution Co. Ltd. v. Srigdhaa Beverages*

SCJ-271 · RKG Industries LLP 2023 All HC

C-11 Clause 4.3 f vi landlord co extensive liability for tenant dues 1 case

A landlord's liability for a departed tenant's electricity dues is co-extensive under Clause 4.3(f)(vi), triggered once the connection was given with the landlord's consent (which a tenancy-agreement clause can itself evidence); this reinforces and extends this corpus's arrears/occupant-liability cluster (SCJ-090, SCJ-098) into the landlord-tenant context.

SCJ-124 · Beena Dubey 2017 All HC

C-12 Clause 4.3f director liability not retrospective and requires exhaustion of company assets 1 case

Establishes that Clause 4.3(f)'s director-liability regime (first-charge-on-company-assets, then directors only if insufficient) does not apply retrospectively to dues/citations predating the 2005 Supply Code, and requires the licensee to first exhaust recovery against company assets before reaching directors personally — a limiting counterpoint to this corpus's broader arrears/occupant-liability cluster (SCJ-090, SCJ-098, SCJ-124, SCJ-125), here protecting a corporate...

LEAD AUTHORITIES *Adesh Kumar Jain v. U.P. State Electricity Board; M/s Meekin Transmission Ltd., Kanpur*

SCJ-129 · Piyush Kumar 2012 All HC

C-13 Clause 4.44 failure to mutate keeps recorded consumer liable 1 case

Where no Clause 4.44 application for transfer or mutation was ever made, the connection remains in the recorded name. That recorded consumer cannot, at the section 482 stage, shed s.135 liability by asserting a prior resignation or corporate takeover; those facts go to trial or discharge.

SCJ-665 · Ashok Garg 2017 All HC

C-14 Director liability for company dues subordinate to company assets 1 case

Recovery from directors under Clause 4.3(f)(v) is sequenced after recovery against the company's assets and, pending challenge, abides the outcome of the lead writ petitions.

SCJ-245 · Mukesh Kumar and 3 Others 2017 All HC

C-15 Director not personally liable for company electricity dues 1 case

Director not personally liable for the company's electricity dues absent a personal guarantee; unavailable here as the citation ran against the company through its Director.

SCJ-1062 · Rajee Steels Pvt. Ltd. & Anr. 2016 All HC

C-16 Electricity dues contractual not charge on premises 1 case

A defaulting consumer could not shift its liability to the auction-purchaser via a sale deed it was not party to; dues are enforced under the supply contract and a transferee cannot be foisted with a predecessor's dues absent a contract to the contrary.

LEAD AUTHORITIES *Paschimanchal Vidyut Vitran Nigam Ltd. v. DVS Steels & Alloys Pvt. Ltd.*

SCJ-1062 · Rajee Steels Pvt. Ltd. & Anr. 2016 All HC

C-17 Electricity dues statutory character clearance condition not unreasonable 1 case

Electricity dues are statutory, not purely contractual; insisting on clearance of a premises' arrears as a condition of a fresh connection is not arbitrary or unreasonable.

LEAD AUTHORITIES *Paschimanchal Vidyut Vitran Nigam Ltd. v. DVS Steels & Alloys (P) Ltd.; Hyderabad Vanaspathi Ltd. v. A.P. State Electricity Board*

SCJ-271 · RKG Industries LLP 2023 All HC

C-18 Fresh connection to auction purchaser free from encumbrances 1 case

The petitioner, having bought the premises in a public auction free from all encumbrances, contended it could not be denied a fresh connection for the erstwhile owner's dues; the Court granted an interim connection on a bank guarantee but never decided the Clause 4.3 question (dismissed for want of prosecution).

SCJ-1978 · Kumar Audogic Vikas Pvt. Ltd. 2025 All HC

C-19 Government shareholding does not make licensee dues government dues 1 case

A distribution licensee's dues do not automatically rank as 'government dues' under s.53(1)(e)/(f) IBC merely because of state shareholding in the licensee; the licensee remains a distinct juristic entity in a liberalised, privately-contestable sector.

LEAD AUTHORITIES *Municipal Commissioner of Dum Dum Municipality v. Indian Tourism...*

SCJ-100 · Paschimanchal Vidyut Vitran Nigam Lt... 2023 SC

C-20 Isha marbles distinguishable where auction clause covers dues 1 case

Isha Marbles is confined to auctions with no clause dealing with electricity dues; where the auction is "as is where is" and the terms put the purchaser to notice of dues, the purchaser is liable.

LEAD AUTHORITIES *Isha Marbles v. Bihar State Electricity Board*

SCJ-271 · RKG Industries LLP 2023 All HC

C-21 Lifting corporate veil to fix arrears liability 1 case

Where a common controlling person uses a web of firms/companies and acquisitions to escape recovery, the veil may be lifted to hold the applicant entity liable for the defaulter's arrears as a condition of supply.

SCJ-225 · Raman Ispat (Pvt.) Ltd. & Anr. 2009 All HC

C-22 Meter holder liable notwithstanding tenant in occupation 1 case

The registered consumer in whose name the meter stands is liable for the charges; Clause 2.2(oo)'s 'Occupier' definition does not shift liability to a tenant in occupation. Cf. the definitional Clause 2.2 applied in SCJ-072.

SCJ-1271 · Dinesh Kumar Gupta 2025 All HC

C-23 Owner lessor liable for electricity dues despite third party operation 1 case

The liability for dues under the demand notice and citation was fixed on the owner/lessor in whose name the connection stood, notwithstanding termination of the dealership and Hindustan Petroleum's running of the outlet.

SCJ-1269 · Ashok Kumar Ajmera 2012 All HC

D. Insolvency interface — IBC, SICA & sick units 14 principles · 19 case-applications

Clean-slate, section 238 override, moratorium, and relief-undertaking protection.

D-01 IBC s.238 overrides sector statutes 3 cases

Section 238 of the IBC, being a later special enactment with a non-obstante clause, overrides sectoral statutes with their own non-obstante/first-charge provisions (Electricity Act ss.173-174; also applied to the Customs Act and the Tea Act in other SC rulings) once liquidation/moratorium proceedings are triggered and the sectoral authority has participated in them.

LEAD AUTHORITIES *Innoventive Industries Ltd. v. ICICI Bank & Anr.*; *Paschimanchal Vidyut Vitran Nigam Ltd. v. Raman Ispat (P) Ltd.*

SCJ-054 · Dharti Agro Industries Pvt. Ltd. 2025 All HC

SCJ-157 · South East U.P. Power Transmission C... 2026 All HC

SCJ-160 · Reliance Projects and Property Manag... 2026 All HC

D-02 Pre CIRP electricity dues recoverable only under Section 53 waterfall 2 cases

The licensee is a secured operational creditor recovering pre-CIRP dues only through the Section 53 waterfall, not from the auction purchaser; on liquidation the right to recover from the premises/purchaser is extinguished.

LEAD AUTHORITIES *Eastern Power Distribution Co. of Andhra Pradesh Ltd. v. Maithan Alloys...*; *West Bengal State Electricity Distribution Co. Ltd. v. Sri Vasavi...*

SCJ-270 · HSA Traders 2023 All HC

SCJ-267 · S.K. Construction Co. 2023 All HC

D-03 Resolution plan extinguishes pre CIRP electricity dues clean slate 2 cases

Electricity dues for the pre-CIRP period, not claimed during CIRP and not in the approved resolution plan, stand extinguished under s.31 IBC; the resolved entity takes over on a clean slate and statutory recovery cannot revive them.

LEAD AUTHORITIES *Ghanashyam Mishra & Sons (P) Ltd. v. Edelweiss Asset Reconstruction Co. Ltd.*; *CoC of Essar Steel India Ltd. v. Satish Kumar Gupta*; *Ghanshyam Mishra & Sons (P) Ltd. v. Edelweiss Asset Reconstruction Co. Ltd.*

SCJ-157 · South East U.P. Power Transmission C... 2026 All HC

SCJ-160 · Reliance Projects and Property Manag... 2026 All HC

D-04 Section 238 IBC overrides supply code Clause 4.3f 2 cases

Section 238 IBC overrides Clause 4.3(f) of the U.P. Supply Code where inconsistent; a fresh connection to an auction purchaser cannot be conditioned on clearing the corporate debtor's pre-CIRP dues.

LEAD AUTHORITIES *Paschimanchal Vidyut Vitran Nigam Ltd. v. Raman Ispat Pvt. Ltd. (NCLAT)*

SCJ-270 · HSA Traders 2023 All HC

SCJ-267 · S.K. Construction Co. 2023 All HC

D-05 Corporate debtor liability distinct from director guarantor liability 1 case

Extinguishment of the corporate debtor's pre-CIRP liability is distinct from the co-extensive personal liability of erstwhile directors as guarantors under an independent contract of guarantee.

LEAD AUTHORITIES *Narendra Singh Panwar v. Paschimanchal Vidyut Vitran Nigam Ltd.*

SCJ-266 · Trimurti Concast Pvt. Ltd. 2023 All HC

D-06 IBC liability crystallises at resolution plan effective date 1 case

The resolved debtor's liability crystallises from the plan's 'effective date' (actual transition of control), not the mere date of NCLT approval, especially where implementation was delayed by litigation; time excluded in litigation benefits the debtor, not the statutory creditors.

SCJ-160 · Reliance Projects and Property Manag... 2026 All HC

D-07 IBC moratorium does not cover personal guarantor directors 1 case

The s.14 IBC moratorium and a resolution plan's discharge of the Corporate Debtor do not extinguish a Director's independent personal-guarantor liability for the company's electricity dues under Clause 4.3(f)(v)/6.15 of the Supply Code — a distinct sub-doctrine within this corpus's IBC/electricity-arrears cluster (cf. SCJ-054 Dharti Agro Industries, where IBC s.238 barred recovery from the licensee itself post-liquidation; SCJ-063's PVVNL v. Raman Ispat line on arrears...

LEAD AUTHORITIES *State Bank of India v. V. Ramakrishnan*; *Lalit Kumar Jain v. Union of India*; *Laxmi Pat Surana v. Union of India*

SCJ-090 · Narendra Singh Panwar 2023 All HC

D-08 IBC s.238 overrides electricity act recovery mechanism in liquidation 1 case

Once liquidation commences, IBC s.238 overrides the Electricity Act's ss.173/174 non-obstante recovery provisions and the Supply Code's Clause 4.3/6.15 mechanism; a licensee cannot independently attach/auction a corporate debtor's assets for electricity dues outside the IBC's collective process — directly confirms and elevates to Supreme Court authority the qualification to the arrears-run-with-the-premises doctrine already tracked via SCJ-054 (Dharti Agro Industries) and...

LEAD AUTHORITIES *Sundaresh Bhatt, Liquidator of ABG Shipyard v. Central Board of Indirect...*; *Duncans Industries Ltd. v. AJ Agrochem*

SCJ-100 · Paschimanchal Vidyut Vitran Nigam Lt... 2023 SC

D-09 Relief undertaking notification stays recovery 1 case

A notification under ss.3-4 of the 1966 Act suspends pre-notification liabilities and stays their enforcement, satisfying the stay condition of Clause 4.49 without any court order.

LEAD AUTHORITIES *Modern Syntax (I) Ltd. v. Debts Recovery Tribunal, Jaipur*

SCJ-246 · L.M.L. Ltd. 2009 All HC

D-10 Resolution plan clean slate extinguishes pre CIRP dues 1 case

On approval of a resolution plan under s.31 IBC, pre-CIRP claims not in the plan are extinguished; the corporate debtor under new management cannot be denied a fresh electricity connection for those dues.

LEAD AUTHORITIES *Ghanshyam Mishra & Sons (P) Ltd. v. Edelweiss Asset Reconstruction Co. Ltd.*

SCJ-266 · Trimurti Concast Pvt. Ltd. 2023 All HC

D-11 Section 32a protects corporate debtor property pre CIRP 1 case

Section 32A(2) bars action against the corporate debtor's property for pre-CIRP liabilities once an approved plan changes control to an unconnected person.

SCJ-266 · Trimurti Concast Pvt. Ltd. 2023 All HC

D-12 SICA scheme binds participating licensee 1 case

A licensee heard during and consenting to a BIFR-sanctioned scheme (Sections 19(2) and 32(1) SICA) is bound by its demand-charge waiver and cannot invoke its Electricity Act tariff-recovery obligation to escape it.

LEAD AUTHORITIES *M/s Indian Maize and Chemical Ltd. v. State of Uttar Pradesh*

SCJ-1061 · U.P. Power Corporation Ltd. 2019 All HC

D-13 Sick relief undertaking cannot be billed at pre reduction load 1 case

A loss-making unit notified a 'Relief Undertaking' cannot be saddled with billing at the pre-reduction 8 MVA load after production has stopped; the declaration binds the licensee and continued 8 MVA billing was unjust and unfair.

SCJ-246 · L.M.L. Ltd. 2009 All HC

D-14 Sick unit protective treatment 1 case

A licensee must give protective, fair treatment to a Relief Undertaking / Sick Industrial Company (current dues only, arrears in instalments, no coercive disconnection) and cannot defeat an agreed load reduction by legalese; the Supply Code is applied to aid revival.

LEAD AUTHORITIES *Modern Syntax (I) Ltd. v. Debts Recovery Tribunal, Jaipur*

SCJ-038 · Kanpur Electricity Supply Co. Ltd. &... 2010 **SC**

E. Premises, site, estimates, feeders & lines 16 principles · 22 case-applications

Independent feeders, tapping, change of site, estimates, and landowner objections.

E-01 Clause 4.5d landowner objection to supply line 5 cases

A landowner's Clause 4.5(d) right to object to a supply line over his land is vindicated through the Clause 3, Works of Licensees Rules 2006 resolution mechanism before the District Magistrate/Commissioner of Police, balancing private property rights against public electrification interests.

SCJ-545 · Mewati And Anr. 2024 **All HC**

SCJ-120 · Shivmahraj 2024 **All HC**

SCJ-104 · Priy Shankar Pandey 2024 **All HC**

SCJ-169 · Abhimanyu Singh 2026 **All HC**

SCJ-282 · Kumar Ajay Singh 2026 **All HC**

E-02 Independent feeder original consumer consent 3 cases

Clause 3.4(d)(ii)'s consent requirement for tapping an independent feeder runs to the consumer who funded the feeder's construction (the 'original consumer'), not to every downstream tapping consumer who paid only its own connecting-line cost; a downstream consumer can acquire a consent right only by itself having obtained the true original consumer's consent and shared the feeder's cost (Kesarwani Sheetalaya).

LEAD AUTHORITIES *M/s Kesarwani Sheetalaya & Others v. Purvanchal Vidyut Vitran Nigam Ltd. &...; M/s Shiv Flour and Rice Mills v. State of U.P. & Others*

SCJ-708 · Kesarwani Sheetalaya & Ors. 2009 **All HC**

SCJ-244 · Raj Narayan Singh 2013 **All HC**

SCJ-067 · Shri Parasnath Alloys (Pvt.) Ltd. 2013 **All HC**

E-03 Change of site of sanctioned load not permitted 4.8(d) 1 case

Extending a sanctioned connection to a different/enlarged site is a change of site barred by Clause 4.8(d)(i), not an internal change under Clause 4.45(c); a fresh connection must be sought.

SCJ-230 · KPB Metals Private Limited 2022 **All HC**

E-04 Clause 3.4a covers enhancement not just new connections 1 case

Clause 3.4(a)'s mandatory independent-feeder requirement for the specified heavy industries applies to load-enhancement applications as well as new connections — a significant clarification refining SCJ-101 (Pawan Kumar Agarwal) and SCJ-094 (Northern Coalfield) on the scope of Clause 3.4.

SCJ-123 · Sigma Castings Ltd. & Another 2013 **All HC**

E-05 Clause 3.4a independent feeder list is restrictive not illustrative 1 case

Clause 3.4(a)'s enumerated heavy-industry categories requiring mandatory independent-feeder supply are specific and restrictive, not illustrative; other consumers (even at higher loads) have only the Clause 3.4(b) option, not obligation, to seek an independent feeder — directly informs how 'Independent Feeder' provisions are to be read alongside the definitional line traced in SCJ-094 (Northern Coalfield).

SCJ-101 · Pawan Kumar Agarwal s/o M.P. Agarwal 2007 **All HC**

E-06 Clause 3.4d tapping conditions govern both 3.4a and 3.4b 1 case

A conjoint reading of Clause 3.4 shows that sub-clause (d) governs tapping of an independent feeder in both category (a) (Arc/Induction furnaces, rolling/re-rolling/mini steel plants) and category (b) (townships/complexes, domestic, non-domestic, institutional); its conditions are not confined to steel/furnace plants and must be satisfied before any fresh consumer is tapped in.

SCJ-708 · Kesarwani Sheetalaya & Ors. 2009 **All HC**

E-07 Clause 3.4d tapping exception where independent feeder infeasible 1 case

Clause 3.4(d) allows tapping of an existing feeder for a similar-process consumer where an independent feeder cannot be constructed; a licensee cannot insist on 3.4(a) while ignoring the 3.4(d) exception.

SCJ-260 · Purvanchal Vidyut Vitran Nigam Ltd.,... 2008 All HC

E-08 Estimate departmental delay cannot shift feeder or force fresh estimate 1 case

A sanctioned, fully-paid estimate must be honoured; the department's delay cannot be used to move the consumer to a costlier feeder or demand a fresh estimate (Clause 4.6(a)/(g)).

SCJ-258 · Executive Engineer, Electricity Urba... 2010 All HC

E-09 Independent feeder tapping not shared substation determines status 1 case

A feeder remains 'independent' notwithstanding other consumers being fed from other feeders off the same sub-station; it loses independence only if another consumer is tapped onto the very same feeder — the operative test for 'Independent Feeder' both under this pre-Code tariff interpretation and, by extension, informing how the term is later defined in the Electricity Supply Code 2002/2005.

SCJ-094 · Northern Coalfield Ltd. 2005 All HC

E-10 Not a consumer qua transmission lines s.2(72) 1 case

Transmission lines are not part of a licensee's distribution system (s.2(72)), so a person affected by a transmission-line accident is not a 'consumer' (s.2(15)) for that purpose.

SCJ-256 · Suresh Chand Bansal 2014 All HC

E-11 Owner objection to supply requires dm permission rule 3b 1 case

Where an owner objects to a licensee laying/supplying over his premises, the licensee must obtain the DM's/Commissioner's permission under the proviso to Rule 3(b) of the Works of Licensees Rules, 2006; a connection cannot be forced over the objection without it.

SCJ-222 · Daya Nand Sharma 2022 All HC

E-12 Para 4.29 service line cannot bypass Clause 3.4 independent feeder conditions 1 case

'Service line' (Clause 2.2(vv)) and 'independent feeder' are separate concepts; paras 4.29 and 3.4 are harmonised so that para 4.29 cannot be used to supply other consumers through an independent feeder while bypassing the Clause 3.4 conditions, which would otherwise be rendered redundant.

SCJ-708 · Kesarwani Sheetalaya & Ors. 2009 All HC

E-13 Premises is area for which connection sanctioned Clause 2.2(ss) 1 case

'Premises' is the specific area/khasra for which a single consumer's connection was applied for or sanctioned; later-acquired contiguous plots are not part of it merely by adjacency.

SCJ-230 · KPB Metals Private Limited 2022 All HC

E-14 S.67 line over objecting owner land alternative or permission 1 case

Where a line must cross land whose owner objects, the licensee must find an alternative route or follow the s.67(2) permission procedure, causing least damage and paying compensation.

SCJ-264 · Chandu Khamaru 2011 SC

E-15 Single point to multipoint requires 51 percent consumers 1 case

Conversion of an existing single-point supply in a multi-storey building to individual connections requires an application by 51% of the consumers drawing from that single point (Electricity Supply Code (Thirteenth Amendment), 2018). A shop-buyer with 10% support, whose sale deed accepted the vendor's one-point connection and a prepaid meter, has no cause of action for a direct connection. Writ dismissed.

SCJ-355 · Mohammad Afsar Khan And Another 2025 All HC

E-16 Tapping allowed if feasible and original supply unaffected 1 case

Even absent a right to object, tapping is permissible only where technically feasible and the licensee records that the original consumer's supply is not affected.

SCJ-244 · Raj Narayan Singh 2013 All HC

F. Security, load, tariff & regulatory economics 30 principles · 46 case-applications

Additional security, load change, tariff orders, rebates, and Commission-determined charges.

F-01 Licensee cannot alter commission determined tariff 10 cases

Minimum monthly/fixed charges form part of the Commission-notified Tariff Order under Section 24 of the Reforms Act, 1999 and paragraphs 3.8/3.9 of the Code. The licensee cannot waive them on a consumer request, and the Ombudsman cannot direct the licensee to ignore the Tariff Order. Co-lead with SCJ-700 (Writ-C No. 1003603 of 2008, same date and bench); one of the 21.03.2023 Coordinate Bench trio later followed in SCJ-490 to SCJ-494.

LEAD AUTHORITIES *U.P. Power Corporation Ltd. v. Ombudsmen and 2 others* (Writ-C No. 1003603...

SCJ-155 · Saini Alloys Pvt. Ltd. 2006 All HC

SCJ-645 · Chandra Bhan Singh 2013 All HC

SCJ-700 · U.P. Power Corp. Ltd. Through Execut... 2023 All HC

SCJ-701 · U.P. Power Corp. Ltd. Through Execut... 2023 All HC

SCJ-702 · U.P. Power Corp. Ltd. Through Execut... 2023 All HC

SCJ-490 · U.P. Power Corp. Ltd. Through Execut... 2025 All HC

SCJ-491 · U.P. Power Corp. Ltd. Through Execut... 2025 All HC

SCJ-492 · U.P. Power Corp. Ltd. Through Execut... 2025 All HC

SCJ-493 · U.P. Power Corp. Ltd. Through Execut... 2025 All HC

SCJ-494 · U.P. Power Corp. Ltd. Through Execut... 2025 All HC

F-02 Additional security is not dues Clause 4.49 not attracted 3 cases

Additional security is not a recoverable 'due'; Clause 4.49 (stay-of-recovery-of-dues) is not attracted and no bank guarantee for additional security can be demanded.

LEAD AUTHORITIES *Mirzapur Electric Supply Company Limited v. State of U.P.; Tehri Girders Ltd. v. Paschimanchal Vidyut Vitran Nigam Ltd.*

SCJ-252 · Tehri Girders Limited and another 2009 All HC

SCJ-1979 · K.L. Concast Pvt. Ltd. 2011 All HC

SCJ-250 · Barnala Steel Industries Ltd. 2013 All HC

F-03 Security deposit is advance payment not debt 3 cases

A security/additional-security deposit is an advance payment (depositor-deposittee), not a debt owed to the licensee, and is not recoverable as arrears of land revenue.

LEAD AUTHORITIES *Ferro Alloys Corporation Limited v. A.P. State Electricity Board; Tehri Girders Ltd. v. Paschimanchal Vidyut Vitran Nigam Ltd.; Ferro Alloys Corporation Ltd. v. A.P. State Electricity Board; Tehri Girders Limited v. Paschimanchal Vidyut Vitran Nigam Limited; The Mirzapur Electric Supply Company Limited v. State of U.P.; M/s K.L. Concast Pvt. Ltd. v. Paschimanchal Vidyut Vitran Nigam Ltd.*

SCJ-252 · Tehri Girders Limited and another 2009 All HC

SCJ-1979 · K.L. Concast Pvt. Ltd. 2011 All HC

SCJ-697 · R.A. Castings Pvt. Limited 2018 All HC

F-04 Commission alone determines tariff overrides contract 2 cases

Once the regulatory commission is constituted, the statutory power to determine tariff/power-purchase price displaces the price mechanism agreed between the parties, even where the agreement is otherwise statutorily protected.

SCJ-156 · Noida Power Company Ltd. 2005 All HC

SCJ-645 · Chandra Bhan Singh 2013 All HC

F-05 S.47 4 interest on security at bank rate from enactment 2 cases

4.20(1)'s 3% credit is read down; interest on security is payable at the s.47(4) bank rate or more from 10 June 2003, for the period the sub-clause operated.

SCJ-676 · Madhu Roller Flour Mills Pvt Ltd 2010 All HC

SCJ-639 · Prem Steels (Pvt.) Limited 2022 All HC

F-06 Tariff no retrospective effect 2 cases

A revised tariff takes effect only from seven days after its publication (Clause 3.8 of the Supply Code / s.24(7) Reforms Act / Regulation 139); it cannot be applied retrospectively to an earlier date, following Binani Zinc's presumption against retrospective statutory/regulatory effect.

LEAD AUTHORITIES *Binani Zinc Ltd. v. Kerala State Electricity Board & Ors.*

SCJ-066 · Shokumbhari Pulp & Paper Mills Ltd. 2014 All HC

SCJ-1983 · Executive Engineer, Electricity Rura... 2017 All HC

F-07 Additional security 1 case

Unpaid additional security cannot be classified as electricity arrears for the purpose of denying load-factor rebate, even if a UPERC Director (Licensing) letter so treats it.

LEAD AUTHORITIES *M/s K.L. Concast Pvt. Ltd. v. Paschimanchal Vidyut Vitran Nigam Ltd.*

SCJ-697 · R.A. Castings Pvt. Limited 2018 All HC

F-08 Additional security default does not bar load factor rebate 1 case

A tariff-order load factor rebate barred only to consumers 'with arrears' cannot be denied for non-furnishing of additional security, since that default is not arrears; such denial is illegal.

SCJ-1979 · K.L. Concast Pvt. Ltd. 2011 All HC

F-09 Charge follows actual use 1 case

Liability for system-upgradation (the system-loading charge) accrues only on actual consumption; a prospective consumer who never draws supply bears no share of it.

SCJ-002 · Suman Engineering and Chemicals Pvt.... 2023 All HC

F-10 Charge requires consumer option 1 case

A tariff charge conditioned on the consumer opting for a facility (here, protective load) cannot be levied absent that option and the licensee's sanction; it cannot be imposed suo motu on an audit objection.

SCJ-026 · Executive Engineer, Electricity Urba... 2014 All HC

F-11 Charitable institution free or subsidised service tariff Imv 4a 1 case

A charitable institution providing service free or at Government-rate charges is billed under LMV-4(A), not LMV-4(B).

SCJ-261 · Kanpur Electricity Supply Co. Ltd. a... 2011 All HC

F-12 Clause 4.49 intra vires protective not recovery 1 case

Clause 4.49 is a valid protective provision (bank guarantee for a stayed amount as a condition of load enhancement), not a recovery mechanism, and is intra vires the Act.

SCJ-255 · Suvidha Engineers India Ltd. 2009 All HC

F-13 Cross subsidisation of franchisee input rate not per se unlawful 1 case

Cross-subsidisation of a franchisee's below-bulk-supply input rate by a licensee's other-area consumers is a legitimate feature of input-based franchisee models addressing high-loss areas, and is not by itself a ground to invalidate the arrangement absent evidence of illegality or misrepresentation.

SCJ-136 · Torrent Power Limited 2025 SC

F-14 Franchisee is agent of licensee not directly regulable 1 case

Establishes that a distribution franchisee under s.2(27)/seventh proviso to s.14 is the licensee's agent, insulated from direct ERC regulatory oversight; an ERC's s.128 investigation power reaches only the licensee, requiring a concrete showing of licence/Act non-compliance rather than a bare performance review — a significant precedent for this corpus's regulatory-architecture cluster (alongside SCJ-130's SERC-composition ruling and SCJ-106's APTEL-jurisdiction ruling),...

LEAD AUTHORITIES *City Corporation Limited v. Maharashtra Electricity Regulatory Commission...*

SCJ-136 · Torrent Power Limited 2025 SC

F-15 Legal profession not commercial activity for tariff 1 case

Establishes that the legal profession, being a professional (not commercial) activity, cannot be billed under the non-domestic/commercial LMV-2 tariff merely because the current rate schedule lacks an express 'lawyers' chambers' category and a residuary clause would otherwise sweep it into LMV-2 — an important tariff-classification precedent extending Clause 3.3(e)'s residential-professional-use exemption to court-compound chambers, and a discrimination bar between...

LEAD AUTHORITIES *Dr. D.M. Surti v. State of Gujarat; M.P. Electricity Board and Others v. Shiv Narayan and Another; V. Sasidharan v. M/s Peter and Karunakar*

SCJ-133 · Tehsil Bar Association, Sadar Tehsil... 2023 All HC

F-16 Licensee circular cannot override commission tariff order 1 case

A licensee's own circular/notification cannot alter or vary a tariff duly approved by the Regulatory Commission; in case of inconsistency, the Commission-approved tariff order prevails.

LEAD AUTHORITIES *LML Ltd., Kanpur v. State of U.P.*

SCJ-094 · Northern Coalfield Ltd. 2005 All HC

F-17 Load reduction stands approved on licensee decision only ministerial steps left 1 case

Once the licensee's competent authority decides to reduce load on a complete application without pointing out any shortcoming, the reduction stands approved and only ministerial steps remain; the licensee cannot resile by later insisting on requirements not raised at the time.

SCJ-246 · L.M.L. Ltd. 2009 All HC

F-18 MCG waiver barred if dues pending 1 case

Paragraph 11 of the Commercial and Revenue Manual (the petitioner linked the exception to Clause 9.1 of the 2005 Code) withholds MCG for a disconnection period only if no dues are pending. An Ombudsman finding of pending bill dues leaves no occasion to waive MCG; the waiver is quashed. Distinct from SCJ-030 / SCJ-059 (fault for the interruption) and SCJ-490–494 (tariff-order non-waivability of minimum monthly charges).

SCJ-699 · Dakshinanchal Vidyut Vitran Nigam Lt... 2022 All HC

F-19 Minimum charges only if consumer at fault 1 case

Minimum consumption/guarantee charges for a disconnection period are chargeable only if the disconnection is attributable to the consumer's own fault; a licensee-caused or unresolved-fault disconnection cannot ground such a demand.

SCJ-059 · Modern Rice Mill 2011 All HC

F-20 No charge when supply fails by licensee fault 1 case

Minimum-guarantee (and like) charges cannot be levied for a period in which supply failed for a reason attributable to the licensee; the obligation to pay is tied to the licensee's maintaining the minimum standard of supply.

LEAD AUTHORITIES *Raymond Ltd. v. M.P. Electricity Board*

SCJ-030 · Harihar Cold Storage 2011 All HC

F-21 No UPERC approval needed for licensee load reduction 1 case

The Code does not require the U.P. Electricity Regulatory Commission's approval of a licensee's decision to reduce load; the reference to the Commission was a redundant exercise that could not defeat rights accrued on the licensee's own decision.

SCJ-246 · L.M.L. Ltd. 2009 All HC

F-22 Pricing governed by tariff order not supply code 1 case

The manner of charging the price of electricity supply is governed by the Tariff Order and Tariff Schedule under Section 45 of the Electricity Act, 2003; the Supply Code, 2005 prescribes no method of charging the price.

SCJ-1983 · Executive Engineer, Electricity Rura... 2017 All HC

F-23 Reasonable return via sixth schedule reverse application 1 case

A licensee is entitled to a reasonable return; where the purchase price is disputed, reverse application of the Sixth Schedule principles is an appropriate method of determining the rate.

SCJ-156 · Noida Power Company Ltd. 2005 All HC

F-24 Regulator cannot change rules at truing up 1 case

A Regulator cannot, at the truing-up stage, change the methodology or principles of the initial tariff determination; doing so is an impermissible retrospective revision of a quasi-judicial tariff order.

LEAD AUTHORITIES *PTC India Ltd. v. CERC*

SCJ-010 · BSES Rajdhani Power Ltd. 2022 SC

F-25 Security cheque matures on accrual of underlying debt 1 case

Establishes that a 'security' cheque issued at the outset of a Power Supply Agreement matures into an instrument for a legally enforceable debt once electricity is actually supplied and billed and payment defaults, distinguishing *Indus Airways* (no debt ever arose) and aligning with the *Sampelly/Sripati Singh* line — a significant precedent for electricity-dues enforcement via s.138 NI Act prosecutions, complementing this corpus's civil arrears-recovery cluster (SCJ-098,...

LEAD AUTHORITIES *Sampelly Satyanarayana Rao v. Indian Renewable Energy Development Agency Ltd.*; *Sripati Singh v. State of Jharkhand*; *Indus Airways Private Ltd. v. Magnum Aviation Private Ltd.*

SCJ-132 · Sunil Todi & Ors. 2021 SC

F-26 Security v. debt characterisation is a triable defence 1 case

Whether a cheque was truly non-presentable security or secured an existing/maturing liability is a disputed question of fact for trial, not resolvable in a s.482 Cr.P.C. quashing petition.

LEAD AUTHORITIES *HMT Watches v. M.A. Habida*; *M/s Womb Laboratories Pvt. Ltd. v. Vijay Ahuja*

SCJ-132 · Sunil Todi & Ors. 2021 SC

F-27 SERC mandatory legal member not mandatory judicial chairperson 1 case

Landmark Electricity Act institutional-architecture ruling: s.84(2) enabling (not mandatory) as to a judicial Chairperson, but mandatory legal/judicial Member requirement for any SERC exercising adjudicatory functions — foundational for any future case in this corpus touching SERC composition or the validity of Commission-level adjudicatory orders.

LEAD AUTHORITIES *Union of India v. Madras Bar Association (MJ-I)*; *Madras Bar Association v. Union of India (MJ-II)*; *Tamil Nadu Generation and Distribution Corporation Ltd. v. PPN Power...*

SCJ-130 · State of Gujarat & Ors. 2018 SC

F-28 Tariff interpretation is not a jurisdictional question 1 case

A challenge framed as 'beyond the scope of Section 45' to a demand-charge / 75% billable-demand levy for a disconnection period is really tariff interpretation, not want of jurisdiction; it does not attract the 'wholly without jurisdiction' exception to the alternative-remedy rule. Applied with Whirlpool and Gujarat Ambuja.

LEAD AUTHORITIES *Whirlpool Corporation v. Registrar of Trade Marks, Mumbai*; *State of H.P. v. Gujarat Ambuja Cement Ltd.*

SCJ-1562 · Shree Gopala Iron (India) Ltd. & Anr. 2012 All HC

F-29 Temporary supply classified by purpose not duration 1 case

Supply for construction/civil work is 'temporary' under LMV-9 Part C by reason of its purpose and defined period, not its load or how long it actually ran; it attracts the appropriate schedule's rate plus 25%.

SCJ-166 · Hyundai Engineering and Construction... 2013 All HC

F-30 Withdrawn load factor rebate is a recoverable due 1 case

A load-factor rebate given in the bill and later withdrawn becomes a 'due', so a bank-guarantee demand for that amount is permissible (unlike additional security).

SCJ-252 · Tehri Girders Limited and another 2009 All HC

G. Metering 20 principles · 32 case-applications

Clause 5.6 testing, defective and slow meters, check meters, and meter-reading disputes.

G-01 Meter dispute must exhaust Clause 5.6 before writ 4 cases

Where a billing dispute turns on the accuracy of a meter/transformer reading, the consumer must first invoke the Clause 5.6 testing procedure (and thereafter the Electrical Inspector) rather than approach the writ court directly; the writ challenge is premature until that statutory route is exhausted.

LEAD AUTHORITIES *Bombay Electric Supply and Transport Undertaking v. Laffans (India) Pvt. Ltd.*

SCJ-083 · Mohamdabad Cold Storage Private Ltd.... 2007 **All HC**

SCJ-086 · Mother India Refrigeration Industrie... 2007 **All HC**

SCJ-1980 · Chandrawati Singh 2015 **All HC**

SCJ-1722 · Vikas Cool Industries 2017 **All HC**

G-02 Meter reading dispute Clause 6.5 4 cases

A bill based on check-meter readings compared with an alleged defective main meter is a meter-reading/billing-correctness dispute for Clause 6.5, not a writ determination of whether independent laboratory testing or presence at meter removal was required.

SCJ-704 · The Purvanchal Vidyut Vitran Nigam L... 2010 **All HC**

SCJ-046 · Lala Ram Batham 2012 **All HC**

SCJ-669 · Mohan Electrocasting Pvt. Ltd. And A... 2023 **All HC**

SCJ-551 · Hotel Pride Inn 2024 **All HC**

G-03 Clause 5.6d meter testing procedure mandatory for theft finding 3 cases

A theft finding premised on a defective/tampered meter requires compliance with Clause 5.6(d)'s testing procedure (notice, opportunity to be present, consumer's right to dispute per 5.6(c)); non-compliance (no MRI, no proper laboratory testing) undermines the evidentiary basis for both the assessment and any criminal prosecution.

LEAD AUTHORITIES *M/s Modern Rice Mill v. Madhyanchal Vidyut Vitran Nigam Ltd. & Another; Smt. Amrawati Devi v. Purvanchal Vidyut Vitran Nigam Ltd.*

SCJ-114 · Saurabh Agrawal & Another 2017 **All HC**

SCJ-161 · Rituraj 2017 **All HC**

SCJ-682 · Shamsul Qamar 2018 **All HC**

G-04 Meter manufacturer testing not independent 3 cases

Testing of a disputed meter by its own manufacturer (e.g. Secure Meters Ltd.) does not satisfy the Code's requirement of testing at an 'independent laboratory'; such testing is inherently biased and cannot be relied upon to sustain an unauthorised-use assessment. Followed by later cases (see also SCJ-051 line applying the same technical background).

LEAD AUTHORITIES *M/s JMD Alloys Limited v. Bihar State Electricity Board; M/s Modern Rice Mill v. MVVNL & Anr.; Modern Rice Mill v. Madhyanchal Vidyut Vitran Nigam Ltd.*

SCJ-059 · Modern Rice Mill 2011 **All HC**

SCJ-071 · Venus Stone Crushing Co. & Anr. 2012 **All HC**

SCJ-161 · Rituraj 2017 **All HC**

G-05 Defective meter not per se theft distinct assessment regime 2 cases

A defective meter, absent a finding that the consumer rendered it defective, is not per se theft/UUE under s.126 and is governed by the distinct defective-meter rules (Clauses 5.6/5.8), not the s.126 route.

SCJ-189 · Krishna Kumar Bhargava 2014 **All HC**

SCJ-315 · Kamakhya Steels Pvt. Ltd. & Another 2026 **All HC**

G-06 Meter testing venue option must be offered before sealing 2 cases

Before a sealed meter is tested, the licensee must give the consumer a clear (bold-capitals) notice of the right to choose the testing venue — licensee's lab, an approved independent agency, or the electrical inspector; omitting it makes the testing illegal.

SCJ-162 · Amrawati Devi 2009 **All HC**

SCJ-161 · Rituraj 2017 **All HC**

G-07 Billing must follow actual meter reading 1 case

Metered consumption must be billed on actual meter readings; a licensee's supplementary/amended bill raised later on a presumed/average basis (e.g. suspected faulty meter) is not lawful absent due process — resonates with the Clause 5.6/5.9 defective-meter procedure line already established in this corpus (e.g. SCJ-058, SCJ-059, SCJ-071).

SCJ-076 · Maharashtra Electricity Regulatory C... 2007 SC

G-08 Check meter and substation readings relevant to theft assessment 1 case

In a theft/UUE assessment, the reading of an outdoor check meter (found O.K.) and of the sub-station accounting meter (line-loss records tallying at both ends) are relevant factors the assessing officer must consider before concluding theft.

SCJ-164 · Parmarth Steels & Alloys (Pvt.) Ltd.... 2013 All HC

G-09 Check meter procedure on consumer request 1 case

The Clause 5.6 check-meter/testing procedure for a disputed meter is triggered only by the consumer's request; a consumer who has knowledge of a slow-meter finding and does not dispute it or seek testing cannot later invoke Clause 5.6 non-compliance to challenge the consequential bill.

SCJ-058 · Krown Bakers India Pvt. Ltd. 2014 All HC

G-10 Clause 4.15 HT/EHT independent entry to meter 1 case

Clause 4.15(b) obliges HT/EHT consumers to provide independent entry to the meter or metering cubicle; Clause 4.15(a) lets the licensee fix the point of supply so meters remain unobstructed. An EE order to build a cubicle near the main gate with independent access is *intra vires*; a plea that access already exists goes to the EE, not the writ court.

SCJ-670 · Atul Industrial Corporation And Anot... 2023 All HC

G-11 Clause 5.6 meter testing required before missing meter assessment 1 case

Reinforces this corpus's Clause 5.6 line (Smt. Amrawati Devi, Modern Rice Mill) requiring meter testing/verification before an assessment premised on a missing or defective meter is finalised.

LEAD AUTHORITIES *Smt. Amrawati Devi v. PuVVNL*; *M/s Modern Rice Mill v. MVVNL*

SCJ-126 · Vimla Tiwari 2012 All HC

G-12 Connection must be released with a meter 1 case

Releasing an electricity connection without installing a meter is illegal under the Electricity Act, 2003; the proviso to Section 55(1) even allows a consumer to install a purchased meter, so meter-unavailability is no excuse for a meterless release.

SCJ-1265 · Kanpur Electricity Supply Company Lt... 2011 All HC

G-13 Impossibility exception outside meter billing 1 case

Where the consumer's own meter cannot yield a reading due to physical impossibility (fire, theft), a reliably maintained outside/check meter may exceptionally found billing, applying the impossibility maxims.

LEAD AUTHORITIES *Inter College Kusmaul, Gorakhpur & Anr. v. State of U.P. & Ors.*

SCJ-060 · Mohit Paper Mills Ltd. & Anr. 2011 All HC

G-14 Independent lab testing only if conclusion rests on test report 1 case

Clause 5.6(c)(iii)'s independent-laboratory option is triggered only when the tampering/defect finding is derived from a test report; it has no application where tampering is visibly patent at inspection, distinguishing Mohd. Sagir and Amrawati Devi (ambiguous, test-report-dependent tampering).

LEAD AUTHORITIES *Mohd. Sagir v. Dakshinanchal Vidyut Vitran Nigam Ltd.*; *K.C. Ninan v. Kerala State Electricity Board & Ors.*

SCJ-064 · Santosh Preservation Pvt. Ltd. & Anr. 2023 All HC

G-15 **Mandatory pretesting notice final by SLP dismissal** 1 case

The mandatory seven-day pre-testing notice requirement (*Amrawati Devi*) is now final law, the Supreme Court having dismissed the SLP against it; non-compliance renders the test report unusable.

LEAD AUTHORITIES *Smt. Amrawati Devi v. Purvanchal Vidyut Vitran Nigam Ltd. & Anr.*

SCJ-071 · Venus Stone Crushing Co. & Anr. 2012 All HC

G-16 **Meter removed without objection loses right to dispute** 1 case

A consumer who allows the meter to be removed/replaced without raising a s.26(6) dispute loses the material evidence and cannot later dispute past bills on meter-correctness grounds.

SCJ-262 · I.G. Shoes Pvt. Ltd. 2016 All HC

G-17 **No billing on basis of check meter** 1 case

A bill/demand cannot be raised on the basis of a check meter, there being no such provision in the Code or the Act.

SCJ-202 · Gautam Motors Pvt. Ltd. 2016 All HC

G-18 **Prepayment meter exemption conditional on availability** 1 case

The s.47(5)/Clause 4.20(l) security exemption for consumers willing to take supply through a prepayment meter operates only once such meters are actually available for that consumer category; unavailability (as for HT consumers) leaves the licensee's ordinary power to demand security under s.47(1)-(4) intact. Followed and agreed with the Telangana/AP High Court's parallel ruling in *Sarwottam Ispat*.

LEAD AUTHORITIES *Sarwottam Ispat Ltd. v. Southern Power Distribution Company of Telangana...*

SCJ-053 · Dev Prayag Paper Mill (Pvt.) & Ors. 2017 All HC

G-19 **Slow meter difference only three months Clause 5.6cii** 1 case

Under Clause 5.6(c)(ii) the difference for a slow/defective meter is chargeable only for the previous three months, and testing must be in the consumer's presence with an opportunity to object; a multi-year slow-meter demand cannot stand.

SCJ-203 · Madhuvan Properties (P) Ltd. 2016 All HC

G-20 **Slow metering assessment inconsistent with parallel theft prosecution** 1 case

Where a licensee itself assesses and fully recovers disputed consumption as slow-metering charges under Clause 5.6(c)(ii) (a civil, non-theft remedy), and a s.127 appellate authority conclusively finds s.135 inapplicable on the same facts, a parallel/continuing s.135 theft prosecution on the identical inspection report is an abuse of process.

SCJ-114 · Saurabh Agrawal & Another 2017 All HC

H. Billing, payment, instalments & limitation 24 principles · 97 case-applications

Clause 6.5 objections, 6.14 instalments, first-due, and the two-year bar (s.56 / Cl. 6.15).

H-01 Billing objection to executive engineer under 6.5 29 cases

A consumer who disputes recovery of arrears on the ground of non-use after a pole-shifting application, and who relies on a civil court order about shifting of poles, must still take the billing objection to the Executive Engineer under clause 6.5.

LEAD AUTHORITIES *Smt. Saroj Devi v. State of U.P. (Writ Petition No. 30908 of 2018, 12.09.2018)*; *Neeraj Datta v. State (NCT of Delhi)*

- SCJ-704 · The Purvanchal Vidyut Vitran Nigam L... 2010 **All HC** SCJ-634 · Roop Narayan Tripathi 2011 **All HC**
- SCJ-917 · Mohd. Azahar 2012 **All HC** SCJ-241 · Gul Mohammad 2013 **All HC** SCJ-254 · Chandrapal 2014 **All HC**
- SCJ-253 · Mohammad Khalid 2014 **All HC** SCJ-1282 · Sudesh Mishra 2014 **All HC** SCJ-1367 · Rajveer Singh 2016 **All HC**
- SCJ-1450 · Virendra Kumar 2016 **All HC** SCJ-1477 · Ajay Kumar Jaiswal 2016 **All HC** SCJ-1484 · Surendra Pratap Singh 2016 **All HC**
- SCJ-1516 · S.R. Preservation Pvt. Ltd. 2016 **All HC** SCJ-636 · Maula Bux 2016 **All HC** SCJ-238 · Mamata Verma 2017 **All HC**
- SCJ-1665 · Sanjay Kumar Sharma 2017 **All HC** SCJ-226 · Shree Radhey Ice Factory 2018 **All HC** SCJ-1766 · Rajkumari 2018 **All HC**
- SCJ-237 · Buddhesh Patel 2018 **All HC** SCJ-1864 · Ramesh Nath Pandey 2018 **All HC** SCJ-1944 · Saroj Devi 2019 **All HC**
- SCJ-669 · Mohan Electrocasting Pvt. Ltd. And A... 2023 **All HC** SCJ-234 · Shashi Bhushan Singh 2023 **All HC**
- SCJ-563 · Deo Dutt Kumar 2024 **All HC** SCJ-544 · Vijay Shukla 2024 **All HC** SCJ-551 · Hotel Pride Inn 2024 **All HC**
- SCJ-542 · Abhishek Chand Kaushik 2024 **All HC** SCJ-363 · Laxmi Chaurasiya 2025 **All HC** SCJ-534 · Petitioner 2025 **All HC**
- SCJ-319 · Executive Engineer, Paschimanchal Vi... 2026 **All HC**

H-02 Installment payment Clause 6.14 19 cases

A consumer unable to pay an outstanding bill in one go may apply under Clause 6.14 of the Supply Code for installment payment; the Executive Engineer must consider and decide such an application expeditiously.

- SCJ-815 · Pratap Singh 2010 **All HC** SCJ-922 · Nawab Ali 2012 **All HC** SCJ-923 · Panna Lal 2012 **All HC**
- SCJ-924 · Installment facility under clause 6.... 2012 **All HC** SCJ-1199 · Nawal Singh @ Lovil 2014 **All HC**
- SCJ-1367 · Rajveer Singh 2016 **All HC** SCJ-1704 · Prime Gold International Ltd. 2017 **All HC** SCJ-1578 · Devendra Singh 2017 **All HC**
- SCJ-1585 · Iqbal Ahmad 2017 **All HC** SCJ-1587 · Wahid Siddiqui 2017 **All HC**
- SCJ-1634 · U.S. Foods Private Limited And Anoth... 2017 **All HC** SCJ-1646 · Abdul Sattar 2017 **All HC**
- SCJ-1677 · Punit Kumar Gupta 2017 **All HC** SCJ-1682 · Nutek Overseas Pvt. Ltd. 2017 **All HC** SCJ-1689 · S.S. Industries 2017 **All HC**
- SCJ-1932 · Balendra 2018 **All HC** SCJ-1872 · Salman @ Salman Qureshi 2018 **All HC** SCJ-045 · Kripa Shanker 2025 **All HC**
- SCJ-302 · Spencer Retail Limited 2026 **All HC**

H-03 Instalment facility Clause 6.14 for financial distress 18 cases

Instalments for electricity dues are a discretionary facility under Clause 6.14, confined to consumers in financial distress, granted only by an Executive Engineer or above within the prescribed tiers, with no surcharge waiver and a minimum 40% first instalment.

- SCJ-922 · Nawab Ali 2012 **All HC** SCJ-923 · Panna Lal 2012 **All HC** SCJ-924 · Installment facility under clause 6.... 2012 **All HC**
- SCJ-182 · Mohammad Waseem 2012 **All HC** SCJ-1074 · Satyendra Singh 2013 **All HC** SCJ-1075 · Savari Ice Factory 2013 **All HC**
- SCJ-251 · Usha Devi 2014 **All HC** SCJ-1225 · Dinesh Chandra 2014 **All HC** SCJ-1245 · Natthoram 2014 **All HC**
- SCJ-1253 · Gufran 2014 **All HC** SCJ-1476 · Harikesh Yadav 2016 **All HC** SCJ-1981 · AVS Roto Pack Pvt. Ltd. & Another 2016 **All HC**
- SCJ-1720 · Parmarth Steel & Alloys Pvt. Ltd. 2017 **All HC** SCJ-1634 · U.S. Foods Private Limited And Anoth... 2017 **All HC**
- SCJ-216 · Sultan Khan 2017 **All HC** SCJ-1846 · Manveer Singh 2018 **All HC** SCJ-1756 · Neeraj 2018 **All HC**
- SCJ-232 · Udayveer Singh 2018 **All HC**

H-04 **Clause 6.15 two year bar mandatory licensee duty to act** 5 cases

The Clause 6.15/s.56(2) two-year recovery bar is not passive — it obliges the licensee to actively pursue notice-and-disconnection under Clause 4.36 within that window; prolonged inaction (here, ~12 years) forfeits recoverability, and Clause 4.38(c)'s permanent-disconnection-affidavit requirement cannot be read in isolation to override this.

SCJ-218 · Paliwal Alloys (Pvt.) Ltd. 2009 All HC

SCJ-113 · Satya Narayan 2013 All HC

SCJ-214 · Muneshwar Prasad Baranwal 2018 All HC

SCJ-263 · Zaz Leather Complex Pvt. Ltd. 2023 All HC

SCJ-477 · Executive Engineer, Dakshinanchal Vi... 2025 All HC

H-05 **Clause 6.5 objection must be in proper form** 3 cases

A billing objection triggers the licensee's duty to decide it only if it conforms to Clause 6.5 (particulars of amount deposited and the specific objection to the bill); a non-conforming representation need not be decided.

SCJ-187 · Mukesh Singh Chaturvedi 2014 All HC

SCJ-1420 · Sm. Neelima Tiwari 2016 All HC

SCJ-544 · Vijay Shukla 2024 All HC

H-06 **Licensee demand on paid bills requires shown provision** 3 cases

After due discharge of bills, a later demand on alleged licensee mistake is confined to Section 56 as read in Rahamatullah Khan; additional demand may be raised, disconnection may not, and the demand cannot be progressively increased. The licensee must particularise the mistake and calculation, then sue if unpaid.

LEAD AUTHORITIES *Assistant Engineer, Ajmer Vidyut Vitran Nigam Ltd. v. Rahamatullah Khan...*

SCJ-284 · Krishna Kant Dubey 2026 All HC

SCJ-283 · Om Food Manufacturing Center 2026 All HC

SCJ-328 · Ghanshyam 2026 All HC

H-07 **Clause 6.5b quantification dispute** 2 cases

A dispute solely over quantification of a demand is relegated to the Clause 6.5B authority for a reasoned determination, rather than being adjudicated in writ jurisdiction.

SCJ-075 · Madarsa Dargah Aaliya Islamiya Share... 2023 All HC

SCJ-534 · Petitioner 2025 All HC

H-08 **First due on billing not consumption** 2 cases

Electricity charges become 'first due' when the bill is issued quantifying them, though liability to pay arises on consumption; the limitation clock under s.56(2) starts from billing.

SCJ-009 · Assistant Engineer (D1), Ajmer Vidyut... 2020 SC

SCJ-477 · Executive Engineer, Dakshinanchal Vi... 2025 All HC

H-09 **Clause 4.14g paid final bill bars further demand** 1 case

A 2016 receipt stamped 'P.D. Final Amount' for Rs 1,696, undenied and consistent with the licensee's admission that records are missing, is treated as Clause 4.14(g) termination and no-dues. A 2025 demand of Rs 1,66,916 on that connection is quashed; missing records cannot revive billing.

SCJ-328 · Ghanshyam 2026 All HC

H-10 **Clause 6 15b read with Section 56 not independent limitation** 1 case

Para 6.15(b) of the U.P. Electricity Supply Code, 2005 was held to take colour from Section 56(1) and not to impose a stand-alone two-year limitation, even in a theft case. Same Clause 6.15 cluster as SCJ-113, SCJ-477.

SCJ-1264 · Joginder Singh 2023 All HC

H-11 **Clause 6.12 governs bill payment appropriation not duty refund** 1 case

Clause 6.12's order of application applies to appropriating a consumer's bill payment, not to adjusting duty/amounts already realised from the consumer.

SCJ-204 · Shri Radhey Iron (Pvt.) Ltd. 2013 All HC

H-12 **Clause 6.15 two year limitation relegated to authority** 1 case

On review, by consent, the petitioner was given liberty to make a representation to respondent no.1 raising only the Clause 6.15 plea that arrears older than two years cannot be recovered; the writ court did not itself decide the limitation question.

SCJ-1976 · Capital Polymers Industries (P) Ltd. 2018 **All HC**

H-13 **Excess duty realised must be adjusted against current bill** 1 case

Electricity duty realised during an exemption period is an excess recovery that must be adjusted against the consumer's current bill; the licensee cannot defer the adjustment or disconnect for a bill covered by the amount already held.

SCJ-204 · Shri Radhey Iron (Pvt.) Ltd. 2013 **All HC**

H-14 **Fresh bill distinguished from supplementary bill for s.56(2)** 1 case

The relaxation for a supplementary bill (limitation running from discovery of a bona fide mistake) does not extend to a fresh bill for over two years; Clause 6.15 was not addressed in the Ajmer Vidyut line.

LEAD AUTHORITIES *Assistant Engineer (D1), Ajmer Vidyut Vitran Nigam Ltd. v. Rahamatullah Khan*

SCJ-263 · Zaz Leather Complex Pvt. Ltd. 2023 **All HC**

H-15 **Interest corollary of retention** 1 case

Interest on a sum wrongfully retained/evaded (e.g. under Clause 8.1 of the Supply Code) is compensatory, not penal or confiscatory.

LEAD AUTHORITIES *Wig Brothers (Builders & Engineers) (P) Ltd. & Anr. v. Union of India & Ors.*

SCJ-055 · Hind Industries Limited 2011 **All HC**

H-16 **Licensee bears burden of proving retained charges** 1 case

Deposits taken as part of the estimate are refundable unless the licensee proves the actual expenditure reasonably incurred; unproved heads must be refunded.

SCJ-002 · Suman Engineering and Chemicals Pvt.... 2023 **All HC**

H-17 **LPS not leviable absent consumer default** 1 case

Late payment surcharge under Clause 6.7 / the rate schedule cannot be charged where the payer was not a defaulter — here an Official Liquidator with no funds until realisation of assets, supplying under court order; actual bills admitted, surcharge disallowed.

SCJ-152 · U.P. State Cement Corporation Ltd. (... 2007 **All HC**

H-18 **No series of provisional bills without statutory basis** 1 case

Provisional assessment bills cannot be issued serially in the absence of a provision in the Act or the Code; provisional billing under Clause 6.2(b) is confined to cases where the meter reading cannot be taken, and regular-bill disputes lie under Clause 6.5.

SCJ-231 · Vineet Plastics Ltd. 2014 **All HC**

H-19 **One time settlement finality** 1 case

Acceptance of a licensee's One Time Settlement covering all pending disputes estops the consumer from later reviving any one of those disputes.

SCJ-068 · Three Star Paper Mills Pvt. Ltd. 2018 **All HC**

H-20 **S.56(2) bar does not apply to continuing regular bills** 1 case

The s.56(2) limitation protects against belated first demands, not the ongoing accrued bills of a continuing consumer still being supplied; a gross defaulter who paid nothing while consuming cannot invoke it.

SCJ-198 · Mamta Devi Srivastava 2014 **All HC**

H-21 **S.56 2 two year bar not retrospective to pre 2003 act liabilities** 1 case

The s.56(2)/Clause 6.15 two-year recovery-limitation bar applies only prospectively to post-2003-Act liabilities; pre-2003-Act liabilities remain governed by s.24 of the 1910 Act (no limitation on demand/recovery power) via s.6 of the General Clauses Act — an important temporal-scope qualification on the recovery-limitation doctrine tracked elsewhere in this corpus (SCJ-111, SCJ-113, SCJ-119), distinguishing and narrowing the Paliwal Alloys/Satya Narain line where the...

LEAD AUTHORITIES *Kusumam Hotels (P) Ltd. v. Kerala State Electricity Board*; *M/s Isha Marbles v. Bihar State Electricity Board*

SCJ-122 · Shyam Ferrous Ltd. Gopal Nagar 2015 All HC

H-22 **S.62 6 interest only for overcharging not delayed rebate** 1 case

Section 62(6) interest is confined to genuine overcharging above the determined tariff; a rebate under the tariff order is a bill-level concession, and its delayed crediting does not attract s.62(6) interest.

SCJ-072 · Kamla Cold Storage And Ice Factory 2020 All HC

H-23 **Sum first due means when bill actually raised** 1 case

For limitation purposes, an electricity charge/penalty 'first becomes due' only when a bill/demand is actually raised (and unpaid), not from the date of the underlying default/violation — a licensee's delayed billing (for legitimate reasons, e.g. awaiting correction of an earlier erroneous waiver) does not by itself extinguish recovery rights.

LEAD AUTHORITIES *MCD v. H.D. Shourie*; *NDMC v. Karam Chandra Thapar & Brothers Pvt. Ltd.*

SCJ-122 · Shyam Ferrous Ltd. Gopal Nagar 2015 All HC

H-24 **Two year limitation recovery of electricity arrears** 1 case

Recovery initiated in 2010 for a 1997 disconnection was quashed as barred by Clause 6.15(b) of the Supply Code, the Corporation having failed to establish that the dues were continuously shown as recoverable.

SCJ-1062 · Rajee Steels Pvt. Ltd. & Anr. 2016 All HC

I. Disconnection, reconnection & restoration 10 principles · 17 case-applications

Permanent disconnection, notice, and restoration on deposit or bank guarantee.

I-01 Clause 4.37 4.38 licensee empowered to permanently disconnect 5 cases

After temporary disconnection, Clauses 4.37(a) and 4.38 empower the licensee to move to permanent disconnection if the cause is not removed within six months; that power is the licensee's, and a bill-disputing consumer cannot compel its exercise in writ.

SCJ-1847 · Mohd. Asif 2018 All HC

SCJ-595 · Satish Kumar @ Yatish Sharma 2024 All HC

SCJ-357 · Sagufta Ishrar 2025 All HC

SCJ-447 · Petitioner 2025 All HC

SCJ-281 · Parvati Devi 2026 All HC

I-02 Disconnection not for landlord tenant dispute 3 cases

A tenant in possession is not to be deprived of electric supply on account of a landlord-tenant dispute; supply is restored (here by civil injunction pending the suit).

SCJ-018 · Dipali Dey (Baxi) 2009 SC

SCJ-016 · Devendra Sharma 2011 All HC

SCJ-020 · Divya Sahani 2021 All HC

I-03 Reconnection available after permanent disconnection Clause 4.39 2 cases

Clause 4.39 of the Supply Code r/w the second proviso to Section 135(1A) EA2003 makes reconnection or fresh connection available even after a permanent disconnection ('PDC final') recorded on theft allegations; the authority is directed to consider the request. Interplay of the Supply Code and the theft provision of the Act. Same Clause 4.39 reconnection route as SCJ-1138 and SCJ-1143.

SCJ-1563 · Satya Prakash Singhal 2014 All HC

SCJ-1847 · Mohd. Asif 2018 All HC

I-04 Deemed disconnection does not bar theft assessment in writ 1 case

A deemed-disconnection plea under Clauses 4.36-4.38 does not, in a writ, negate a theft assessment where unauthorised drawing continued after disconnection; the point is for the Section 127 appeal.

SCJ-1269 · Ashok Kumar Ajmera 2012 All HC

I-05 Direction to consider reconnection subject to clearing dues 1 case

Rather than ordering automatic reconnection, the court directs the competent authority to consider reconnection / fresh connection in accordance with law within a fixed period, conditioned on the consumer clearing all pending dues.

SCJ-1563 · Satya Prakash Singhal 2014 All HC

I-06 Disconnection barred but recovery not 1 case

The two-year bar in s.56(2) restricts only the coercive remedy of disconnection; the licensee may still raise a supplementary demand and pursue other modes of recovery (including within limitation from discovery of a mistake).

SCJ-009 · Assistant Engineer (D1), Ajmer Vidyut... 2020 SC

I-07 No disconnection power for UUE only for theft 1 case

Code Clause 8.1 disconnection applies only to theft (s.135); a UUE case (s.126) does not attract it, and a domestic connection cannot be disconnected for UUE.

SCJ-243 · Subhashis Chatterjee 2011 All HC

I-08 No free consumption disconnection for non payment 1 case

A consumer who consumed electricity must clear the bills; non-payment justifies disconnection, and the absence of a raised bill is no licence for free consumption - the remedy is to resolve the billing dispute under the Code.

SCJ-221 · Shanti Devi 2016 All HC

I-09 Notice required before permanent disconnection 1 case

Permanent disconnection of electricity supply — even where grounded in an allegation of unauthorized use — requires prior notice/show-cause opportunity under the Supply Code; disconnection without notice is arbitrary and unauthorized, warranting reinstatement without prejudice to a subsequent lawful show-cause process.

SCJ-108 · Raju 2024 **All HC**

I-10 Restoration of connection on furnishing bank guarantee 1 case

The time to furnish the bank guarantee was extended and it was directed that any connection disconnected only for its non-furnishing be forthwith restored on furnishing the guarantee and completing formalities.

SCJ-1977 · Marsood Khan @ Maqsood Khan 2016 **All HC**

J. Unauthorised use (s.126) & assessment 37 principles · 105 case-applications

What is UUE, the 1.5× rate, notice and hearing, provisional and final assessment.

J-01 Opportunity before final assessment 19 cases

In the consumer/electricity-theft context, the statutory 'reasonable opportunity of hearing' (s.126(3)) includes a personal hearing before a final assessment; taking note of written objections alone is insufficient.

LEAD AUTHORITIES *Transmission Corpn. of A.P. Ltd. v. Sri Rama Krishna Rice Mill*; *Khem Chand v. Union of India*; *Ashok Kumar v. State of U.P.*

- | | | |
|--|---|--|
| SCJ-239 · Tehsildar 2009 All HC | SCJ-677 · Amna Khatoon 2010 All HC | SCJ-172 · Suresh Kumar 2011 All HC |
| SCJ-022 · Munni Lal 2011 All HC | SCJ-032 · Hazi Mohd. Yaseen 2011 All HC | SCJ-257 · Bhajan Lal and Anr. 2011 All HC |
| SCJ-015 · Dakshinanchal Vidyut Vitran Nigam Lt... 2012 All HC | SCJ-014 · Chunni Lal Gupta 2014 All HC | |
| SCJ-706 · Mayur Sheetgrah Pvt. Ltd. 2014 All HC | SCJ-153 · Mohd. Sagir 2014 All HC | SCJ-154 · Arup Kumar Mitra 2014 All HC |
| SCJ-165 · Kamil 2016 All HC | SCJ-630 · I.G. Shoes Pvt. Ltd. 2016 All HC | SCJ-661 · Uco Bank 2017 All HC |
| SCJ-658 · Akhalak Ahmad 2020 All HC | SCJ-028 · Gauri Shankar Gupta 2021 All HC | SCJ-352 · Saurabh Agarwal 2025 All HC |
| SCJ-351 · S. Milan Agro Industries & 2 Others 2025 All HC | SCJ-280 · Shahvez Abdullah 2026 All HC | |

J-02 Clause 6.8 hearing procedure mandatory before UUE conclusion 16 cases

Before an assessing officer concludes that unauthorised use of electricity has occurred, Clause 6.8's inspection-report/show-cause/hearing/speaking-order procedure must be substantially followed, given the seriousness of the allegation; a provisional assessment lacking authentic verification data (e.g. unperformed MRI testing that the licensee's own procedure contemplates) is impugnable.

LEAD AUTHORITIES *Maa Vind Vasini Industries v. Purvanchal Vidyut Vitran Nigam Ltd.*; *Ashok Kumar & Others v. State of U.P. & Others*; *Ashok Kumar v. State of U.P.*; *Ashok Kumar & Ors. v. State of U.P. & Ors.*

- | | | |
|--|--|--|
| SCJ-158 · Ashok Kumar & Ors. 2008 All HC | SCJ-673 · Sijaria Ice Gramodhyog Sultanpura & ... 2010 All HC | |
| SCJ-112 · Sanjay Rizvi 2012 All HC | SCJ-192 · Ram Prakash Yadav 2014 All HC | SCJ-193 · Yogendra Singh 2014 All HC |
| SCJ-1982 · Ramanuj Tripathi 2014 All HC | SCJ-1354 · Bahabuddin @ Raju 2015 All HC | SCJ-165 · Kamil 2016 All HC |
| SCJ-176 · Rakesh 2016 All HC | SCJ-661 · Uco Bank 2017 All HC | SCJ-1606 · Shiv Shankar 2017 All HC |
| SCJ-1879 · Mukul Pandey 2018 All HC | SCJ-1809 · Mahadev Singh 2018 All HC | SCJ-674 · Kalpana Agarwal 2019 All HC |
| SCJ-598 · Sangram Singh Yadav 2024 All HC | SCJ-429 · Malkhan Singh 2025 All HC | |

J-03 S.126 procedural strictness notice and hearing 10 cases

A final assessment under s.126 must engage with the consumer's objections and record findings after a fixed hearing date, per Clauses 6.8/8.1; failure to do so vitiates the assessment and any recovery founded on it — reinforcing the procedural-strictness line already tracked in this corpus for theft/final-assessment orders (e.g. SCJ-069, SCJ-071).

LEAD AUTHORITIES *Whirlpool Corporation v. Registrar of Trade Marks*; *Ashok Kumar v. State of U.P.*; *Ashok Kumar & Others v. State of U.P. & Others*; *A.K. Kraipak v. Union of India*

- | | | |
|---|--|--|
| SCJ-706 · Mayur Sheetgrah Pvt. Ltd. 2014 All HC | SCJ-1439 · Jagat Singh 2016 All HC | SCJ-1606 · Shiv Shankar 2017 All HC |
| SCJ-682 · Shamsul Qamar 2018 All HC | SCJ-635 · Ranjana Gupta 2019 All HC | SCJ-674 · Kalpana Agarwal 2019 All HC |
| SCJ-644 · Mahavir Iron Foundry And Another 2023 All HC | SCJ-087 · Mrs Rajendra Kumar Sharma 2024 All HC | |
| SCJ-352 · Saurabh Agarwal 2025 All HC | SCJ-329 · Gauri Prasad 2026 All HC | |

J-04 **UUE assessment at 1.5x tariff not thrice** 7 cases

Unamended s.126(6) fixes a 26.10.2004 theft/UUE assessment at 1.5 times the tariff. Charging thrice under 2002-Code Clause 6.17.2 is illegal; assessment and appeal are quashed and the AO is to re-determine at the statutory rate. Same cluster as SCJ-059, SCJ-227, SCJ-228, SCJ-638, SCJ-640, SCJ-678.

LEAD AUTHORITIES *Sri Bhagwan Gupta v. Kanpur Electricity Supply Company Ltd.*; *Pankaj Kumar v. Kanpur Electric Supply Company and others*; *Vijay Pal Singh & Another v. Dakshinanchal Vidyut Vitran Nigam Ltd & others*

SCJ-640 · Venus Stone Crushing Co. Thru' Partn... 2010 **All HC**

SCJ-227 · Vijay Pal Singh & Another 2010 **All HC**

SCJ-228 · Vijay Pal Singh 2010 **All HC**

SCJ-698 · Raj Kumar 2013 **All HC**

SCJ-188 · Ramveer Singh 2014 **All HC**

SCJ-638 · Tejinder Singh 2018 **All HC**

SCJ-678 · Sri Dauji Cold Storage Pvt Ltd And A... 2018 **All HC**

J-05 **126 v. 135 distinct fields** 5 cases

Foundational: Section 126 (civil, no mens rea, wider purposive 'unauthorised use' covering excess load/change of category under Explanation (b)(iv)) and Section 135 (criminal, mens rea) operate in different and distinct fields with no commonality; Sections 126-127 are a complete code, only the final Section 126(3) order is appealable, and Article 226 relief is confined to jurisdictional review.

LEAD AUTHORITIES *M/s Mohit Paper Mills Ltd. & Anr. v. PVVNL & Ors.*; *Executive Engineer (SOUTHCO) v. Sri Seetaram Rice Mill*

SCJ-243 · Subhashis Chatterjee 2011 **All HC**

SCJ-041 · Executive Engineer, Southern Electri... 2011 **SC**

SCJ-051 · Beeco Electrical India & Anr. 2012 **All HC**

SCJ-1651 · Ajay Prakash Srivastava 2017 **All HC**

SCJ-042 · West Bengal State Electricity Distri... 2019 **SC**

J-06 **S.126 two stage hearing UUE conclusion then quantum** 4 cases

s.126 requires a hearing at two distinct stages — before the assessing officer records the conclusion of unauthorised use (guilt), and before final assessment (quantum); the recorded conclusion of unauthorised use is the jurisdictional condition precedent to a provisional assessment.

LEAD AUTHORITIES *Ashok Kumar v. State of U.P.*; *Ashok Kumar & Others v. State of U.P. & Others*

SCJ-158 · Ashok Kumar & Ors. 2008 **All HC**

SCJ-635 · Ranjana Gupta 2019 **All HC**

SCJ-674 · Kalpana Agarwal 2019 **All HC**

SCJ-644 · Mahavir Iron Foundry And Another 2023 **All HC**

J-07 **Assessment must engage objections with reasons** 3 cases

A final assessment that refers to each paragraph of the objection only to mark it 'not accepted', without reproducing or discussing the points, is non-speaking; a s.127 appellate order that likewise brushes aside the grounds of appeal is unsustainable. Both were quashed and the matter remitted for a speaking reconsideration.

SCJ-352 · Saurabh Agarwal 2025 **All HC**

SCJ-273 · Kamakhya Steels Pvt. Ltd. 2026 **All HC**

SCJ-315 · Kamakhya Steels Pvt. Ltd. & Another 2026 **All HC**

J-08 **Assessment service must be proved else non receipt presumed** 3 cases

If the licensee cannot establish the mode of service of a provisional assessment, non-receipt is presumed and the consumer is treated as denied his s.126(3)/Clause 8.1(b)(iii) opportunity of hearing; objections must then be decided afresh by a speaking order.

SCJ-177 · Mohammad Idrish 2011 **All HC**

SCJ-192 · Ram Prakash Yadav 2014 **All HC**

SCJ-193 · Yogendra Singh 2014 **All HC**

J-09 **Clause 9.3 service mode prerequisite to treating assessment final** 3 cases

A provisional assessment cannot be treated as final for want of objections unless the licensee can establish it was served in the manner Clause 9.3 prescribes; failure to do so, especially where the consumer denies receipt, deprives the consumer of the s.126(3)/Clause 8.1(b)(iii) objection right and vitiates a subsequent recovery based on that unserved assessment.

SCJ-801 · Ramji Lal 2010 **All HC**

SCJ-119 · Shiv Shankar Giri 2011 **All HC**

SCJ-894 · Mohan Bajpai 2012 **All HC**

J-10 Theft assessment is under s.126 appealable s.127 3 cases

Foundational clarification for the corpus: a theft-based assessment (Clause 8.1-8.3 of the Code) remains a Section 126 assessment appealable under Section 127; it is never treated as a non-appealable Section 135 order. Confirms and extends SCJ-011 (Chairman, WBSEB v. Syed Mukbul Hossain) and the Clause 6.8/8.1 line (Ashok Kumar, Mohit Paper Mills).

LEAD AUTHORITIES *Chairman, West Bengal State Electricity Board & Ors. v. Syed Mukbul...; Ashok Kumar & Others v. State of U.P. & Others*

SCJ-743 · Sunder Lal Chaubey 2009 All HC

SCJ-069 · Trikoot Iron & Steels Castings Ltd. 2012 All HC

SCJ-936 · Ram Kumar 2012 All HC

J-11 Assessment must be by EE distribution not EE revenue 2 cases

A revised assessment bill and demand notice issued in purported exercise of s.135 read with clause 6.8(c) by the Executive Engineer (Revenue) were quashed. The power to pass the assessment lies with the Executive Engineer (Distribution).

SCJ-375 · Chakradhari Cold Storage Pvt. Ltd. 2025 All HC

SCJ-478 · R.D. Ice & Cold Storage (P) Ltd. 2025 All HC

J-12 Audi alteram partem for demand assessment orders 2 cases

A demand/assessment order must confront the consumer with adverse material, allow objections, and be a reasoned speaking order after a hearing; a pre-printed proforma order passed in disregard of these requirements (and of prior court directions to that effect) is vitiated for breach of natural justice.

LEAD AUTHORITIES *Uma Nath Pandey & Ors. v. State of U.P. & Anr.*

SCJ-092 · Navi Hasan 2022 All HC

SCJ-552 · Prakash Chandra Gupta 2024 All HC

J-13 Proper service of provisional assessment notice Clause 6.8 2 cases

The department must show that the provisional assessment notice under Clause 6.8 was actually dispatched and served; absent anything on record showing service, the assessment and the consequential recovery fall.

SCJ-257 · Bhajan Lal and Anr. 2011 All HC

SCJ-1982 · Ramanuj Tripathi 2014 All HC

J-14 Set aside assessment is non est fresh reasoned order required 2 cases

An assessment quashed by the writ court is non est; on remand the authority must pass a fresh reasoned/speaking order dealing with the objection, and cannot merely reaffirm or treat the quashed order as alive.

LEAD AUTHORITIES *Ashok Kumar v. State of U.P.*

SCJ-154 · Arup Kumar Mitra 2014 All HC

SCJ-351 · S. Milan Agro Industries & 2 Others 2025 All HC

J-15 UUE period 365 days is fallback not default 2 cases

The 12-month/365-day period for a UUE assessment is a fallback used only when the actual period cannot be ascertained on recorded satisfaction; where ascertainable (e.g. from the date of connection) it must be used, and the period cannot predate the connection.

SCJ-211 · Ram Bahadur 2016 All HC

SCJ-661 · Uco Bank 2017 All HC

J-16 126 v. 135 distinct fields but 126 still applies to theft 1 case

Confirms and extends this corpus's tracked doctrine (SCJ-069 Trikoot Iron & Steels) that theft-based assessment proceeds under s.126 (never under s.135 alone), clarifying (contra a misreading of Southco v. Seetaram Rice Mill's 'different fields' language) that s.126 assessment remains mandatory even where a s.135 FIR/Special Court trial is simultaneously pending — the two tracks (assessment for the civil dues, prosecution/civil-liability determination by the Special Court)...

LEAD AUTHORITIES *Executive Engineer, Southern Electricity Supply Company of Orissa Ltd....; M/s Paliwal Alloys (Pvt) Ltd. v. U.P. Power Corporation Ltd.*

SCJ-111 · Sandeep Kesarwani 2014 All HC

J-17 **Assessment final by consumer acceptance** 1 case

An assessment finalised by the consumer's own written offer to pay in instalments (accepted by the licensee) cannot later be disputed as never having been finalised; his conduct amounts to acceptance/waiver of a formal final-order requirement.

SCJ-065 · Sartaj Rice Mill Thru' Its Partner M... 2015 All HC

J-18 **Burden on licensee to prove unauthorised use** 1 case

In a theft/unauthorised-use assessment the burden is on the department to prove commercial or unauthorised use; a farmer need not disprove it where his use is ancillary agricultural use within the sanctioned load.

SCJ-034 · Islam 2013 All HC

J-19 **Excess load not unauthorised use** 1 case

Excess load or appliance installation within/around the contracted load is not 'unauthorised use' under Section 126 (para 6.9 of the Code); the remedy is the tariff's additional Fixed Charge, not a theft/UUE assessment.

SCJ-039 · Kanpur Electricity Supply Co. Ltd. &... 2011 All HC

J-20 **Final assessment order mandatory under Section 126 3** 1 case

Section 126(3) contemplates a Final Order of Assessment after a Provisional Assessment; a Provisional Assessment treated as Final without a specific order, on the footing that no objections were filed, is prima facie improper. Same Section 126 cluster as SCJ-047 and SCJ-034.

SCJ-1267 · Abdul Gaffar @ G. Hussian 2017 All HC

J-21 **Law as of final assessment date** 1 case

For determining which version of Section 126 (deposit condition, assessment rate) applies, the operative date is the date of the FINAL assessment, not the provisional assessment or the date the cause of action arose.

LEAD AUTHORITIES *Sri Bhagwan Gupta v. Kanpur Electricity Supply Company Ltd.*

SCJ-047 · Lalit Kumar Kapoor 2011 All HC

J-22 **Malice in law vitiates s.126 assessment on fabricated report** 1 case

A s.126 assessment founded on a checking report shown (through compelled personal affidavits) to be internally contradictory/fabricated is vitiated by malice in law, applying the doctrine that malice in law requires no proof of personal ill-will, only action without just cause or on a misrepresented factual basis — a significant procedural-fairness precedent in this corpus's s.126/s.135 assessment cluster.

LEAD AUTHORITIES *S.R. Venkatraman v. Union of India; Mukesh Kumar Agrawal v. State of U.P.; Somesh Tiwari v. Union of India; HMT Ltd. v. Mudappa*

SCJ-126 · Vimla Tiwari 2012 All HC

J-23 **Objection to competence decided by assessing authority** 1 case

The objection to the very competence to issue the Section 126(2) notice was directed to be raised before, and decided by, the competent authority in a reasoned order after hearing, rather than by the writ court.

SCJ-1060 · Rukmani Ferro Pvt. Ltd. 2011 All HC

J-24 **Overdrawal is unauthorised use regardless of tariff change or revenue loss** 1 case

Extends and crystallises Seetaram Rice Mill's core holding: excess-load consumption is 'unauthorised use of electricity' under Explanation (b) (iv) to s.126 in every case, independent of whether it changes tariff category or causes revenue loss, because the harm targeted by s.126 is systemic (grid integrity, voltage stability) not merely pecuniary — the single most significant s.126/Explanation(b) doctrinal clarification in this corpus, directly governing every 'excess load'...

LEAD AUTHORITIES *Executive Engineer, Southern Electricity Supply Co. of Orissa Ltd....*

SCJ-147 · Kerala State Electricity Board & Ors. 2022 SC

J-25 Provisional and final assessment cannot be simultaneous 1 case

After a provisional assessment the authority must give the meter-holder notice to object before a final assessment; a simultaneous provisional-cum-final assessment is treated as merely provisional and reopened. Same 126(3) objection-stage line as SCJ-032, SCJ-898.

SCJ-1271 · Dinesh Kumar Gupta 2025 All HC

J-26 Provisional assessment must state basis and amount 1 case

A provisional assessment must contain the calculation and the amount assessed; a document lacking these is no assessment at all, and the consumer is entitled to have objections decided by a speaking order after hearing.

SCJ-172 · Suresh Kumar 2011 All HC

J-27 Provisional assessment power vests in executive engineer 1 case

Under the Supply Code, 2005 the Executive Engineer holds the provisional-assessment power; an Assistant Engineer (Revenue) calculation sheet issued on the EE's behalf is not the assessment, so a 'wrong officer / bad in law' challenge fails.

SCJ-1566 · Krishna Kumar Sharma 2018 All HC

J-28 Registered post to recorded address deemed sufficient service 1 case

Service of a demand notice by registered post to the address on the licensee's records is deemed sufficient under Explanation 1 to s.3 of the 1958 Dues Recovery Act, regardless of a bare denial of receipt.

LEAD AUTHORITIES *Vishanji Tokarsi v. Collector, Kanpur Nagar*

SCJ-122 · Shyam Ferrous Ltd. Gopal Nagar 2015 All HC

J-29 S.126 assessing officer must personally inspect 1 case

Section 126 requires the assessing officer to conduct the inspection and then provisionally assess. A provisional assessment by the Executive Engineer founded on a Junior/Assistant Engineer's checking report is set aside; the licensee may initiate assessment afresh in accordance with that procedure.

LEAD AUTHORITIES *Executive Engineer v. M/s Sri Seetaram Rice Mill*

SCJ-380 · Satyam Shukla 2025 All HC

J-30 S.126 assessment available for theft unauthorised use covers theft 1 case

'Unauthorised use of electricity' in Explanation (b) to Section 126 is comprehensive enough to cover theft under Section 135; the scheme of the 2003 Act (with the third proviso to Section 135(1A)) contemplates assessment under Section 126 for all categories of unauthorised use, including theft.

SCJ-1059 · Paschimanchal Vidyut Vitran Nigam Lt... 2010 All HC

J-31 S.126 final assessment attaining finality cannot be reopened except fraud 1 case

A final order of assessment under Section 126 that has attained finality cannot be re-opened by the assessing authority, save under inherent authority in cases of fraud or misrepresentation and after affording an opportunity of hearing.

SCJ-1059 · Paschimanchal Vidyut Vitran Nigam Lt... 2010 All HC

J-32 S.126 final assessment delay requires fresh hearing 1 case

An inordinate gap between provisional and final assessment (here, over two years) requires a fresh notice/hearing before the final assessment is passed; failure to do so violates natural justice regardless of the consumer's earlier default in objecting.

SCJ-111 · Sandeep Kesarwani 2014 All HC

J-33 S.126 theft overlap requires quasi criminal procedural rigour 1 case

Because s.126 assessment often shares its factual predicate with s.135 theft and carries comparable reputational/character consequences, the same procedural rigour and honest fact-recording expected in quasi-criminal proceedings must govern s.126 assessments.

SCJ-126 · Vimla Tiwari 2012 All HC

J-34 Search seizure of UUE gadget under clauses 4.33 4.34 1 case

The lawful response to a device used for unauthorised use is search and seizure under Clauses 4.33-4.34 (in the person's presence, with a signed seizure list), not disconnection.

SCJ-243 · Subhashis Chatterjee 2011 All HC

J-35 Supply code regulation cannot exempt from s.126 liability ultra vires 1 case

A landmark, sharply-reasoned ultra vires ruling: a State Commission's Supply Code, being delegated legislation under s.50/s.181(2)(x), cannot create a substantive carve-out from Section 126 liability that the parent Act's self-contained assessment code does not itself provide — reinforcing and extending Anis Ahmad's holding (already in this corpus at SCJ-139) that Supply Codes 'do not relate to' s.126 assessment, into an affirmative invalidation of a specific Regulation...

LEAD AUTHORITIES *U.P. Power Corporation Ltd. & Ors. v. Anis Ahmad; Sukhdev Singh & Ors. v. Bhagatram Sardar Singh Raghuvanshi & Anr.*

SCJ-147 · Kerala State Electricity Board & Ors. 2022 SC

J-36 Tariff under s.126 6 includes both fixed and energy charges 1 case

Confirms, via s.45(3)(a)'s definition, that 'tariff' for s.126(6) purposes includes both fixed charges and energy charges, foreclosing any judicially- or regulation-created category of unauthorised-use assessment limited to fixed charges alone.

SCJ-147 · Kerala State Electricity Board & Ors. 2022 SC

J-37 Unauthorised connected load detected in excess of sanction is assessable 1 case

Applies Punjab SEB v. Vishwa Caliber Builders' holding that a licensee's inability to timeously release a sanctioned enhancement does not excuse a consumer's overdrawal in the interim, and that an Ombudsman/adjudicatory authority commits jurisdictional error by directing regularisation/refund of amounts properly charged for such overdrawal absent statutory authorisation — reinforcing this corpus's Ombudsman-jurisdiction-limits cluster (cf. SCJ-123's citation of the same...

LEAD AUTHORITIES *Punjab State Electricity Board v. Vishwa Caliber Builders Private Limited*

SCJ-147 · Kerala State Electricity Board & Ors. 2022 SC

K. Theft (s.135) & Chapter VIII of the Code 16 principles · 31 case-applications

Civil theft assessment, evidence, acquittal, and the Code's Chapter VIII machinery.

K-01 Clause 8.2x acquittal requires withdrawal of theft assessment 5 cases

A subsequent criminal acquittal on the s.135 charge, per Clause 8.2(X)(g)/(h), mandatorily requires withdrawal of the theft-based civil assessment and meter restoration — where such acquittal post-dates an appellate order, remand is required for the appellate authority to apply this clause.

SCJ-247 · Citi Hotel 2009 **All HC**

SCJ-121 · Kunwar Sarvesh Kumar Singh 2011 **All HC**

SCJ-206 · Urmila Devi 2014 **All HC**

SCJ-179 · Paschimanchal Vidyut Vitaran Nigam L... 2015 **All HC**

SCJ-658 · Akhalak Ahmad 2020 **All HC**

K-02 Theft cannot rest on mere possibility 5 cases

Extends the SCJ-070 / SCJ-273 line from MRI-pattern or mixed-feeder 'possibility of theft' to a restart-inspection that finds an 11 kV cable on the floor and infers that the consumer could connect it to an energised line by artificial means. Without artificial means found on the spot, the s.135(1) proviso presumption is misplaced; a cable in the premises cannot indict on the hypothesis that theft is possible. Unlike SCJ-273 there is no remand: assessment and appeal are set...

LEAD AUTHORITIES *Ashok Kumar & Others v. State of U.P. & Others; Modern Terry Towels Ltd. v. Gujarat Electricity Board*

SCJ-070 · Urmila Oil Industries 2019 **All HC**

SCJ-273 · Kamakhya Steels Pvt. Ltd. 2026 **All HC**

SCJ-315 · Kamakhya Steels Pvt. Ltd. & Another 2026 **All HC**

SCJ-285 · Sangam Crusher Works & Another 2026 **All HC**

SCJ-286 · K.G.N. Stone Crusher Mill & Another 2026 **All HC**

K-03 Theft must be established not presumed 3 cases

A 2002-Code para 6.17 theft finding cannot be presumed from a higher-capacity transformer and cable. Para 2.2(av) requires bypass, meter-tampering, or illegal tapping; absent those facts, and with the MDI in order, the case is excess sanctioned load under para 6.18. Same cluster as SCJ-060.

SCJ-632 · Mohan Dairy & Cold Storage Bulandsha... 2011 **All HC**

SCJ-060 · Mohit Paper Mills Ltd. & Anr. 2011 **All HC**

SCJ-644 · Mahavir Iron Foundry And Another 2023 **All HC**

K-04 Clause 8.1b personal hearing mandatory before final assessment 2 cases

After a consumer files objections to a theft-related provisional assessment, Clause 8.1(b)(iii) requires an actual personal hearing before any final assessment can be made; a bare 'final notice' reiterating the provisional figure, without a hearing or reasoned order, is unenforceable — reinforcing the corpus's cluster of s.126/Clause 8.1 procedural-strictness rulings (SCJ-069, SCJ-087, SCJ-092, SCJ-111).

LEAD AUTHORITIES *Ashok Kumar & Others v. State of U.P. & Others; Kamil v. State of U.P. & Others; Hazi Mohd. Yaseen v. Paschimanchal Vidyut Vitaran Nigam Ltd.*

SCJ-117 · Shishir Jain 2017 **All HC**

SCJ-191 · Arvind Kumar 2018 **All HC**

K-05 Clause 8.1b theft notice natural justice 2 cases

Extends the Ashok Kumar/Clause 6.8 line: a theft assessment fails not only for skipping the prescribed procedure but also where the notice/final order misreads or mischaracterises the checking report itself (e.g. conflating a test/double meter's findings with the main meter's), since the consumer is thereby condemned on a factual basis the evidence does not support.

LEAD AUTHORITIES *Ashok Kumar & Others v. State of U.P. & Others*

SCJ-057 · Kissan Chilling Udyog & Anr. 2014 **All HC**

SCJ-048 · Latif 2019 **All HC**

K-06 Owner of premises is consumer liable for theft assessment 2 cases

Applied to the Secretary of a registered society who occupied the premises of the society's connection. Consumer (s.2(15), followed in the 2005 Code) plus occupier (Clause 2.2(oo)) plus person (s.2(49)) made him liable for the theft assessment on a direct cable to the distribution line. Same cluster as SCJ-121 / SCJ-179 (owner as consumer), here occupier-secretary rather than owner.

SCJ-633 · Anil Shastri 2011 All HC

SCJ-179 · Paschimanchal Vidyut Vitaran Nigam L... 2015 All HC

K-07 Reasonable opportunity theft assessment 2 cases

Reasonable opportunity of hearing before a theft-based Section 126 assessment is governed by Clauses 6.8(b)(i)/6.8(c)(iii)/8.1(b) of the Supply Code; substantial compliance (even via a court-directed representation) condones a procedural defect at the provisional stage.

LEAD AUTHORITIES *Khem Chand v. Union of India; Transmission Corporation of A.P. Ltd. v. Sri Rama Krishna Rice Mill*

SCJ-047 · Lalit Kumar Kapoor 2011 All HC

SCJ-706 · Mayur Sheetgrah Pvt. Ltd. 2014 All HC

K-08 Theft UUE enforced via code 2 cases

A compoundable Section 135 theft offence is to be compounded under the Electricity Supply Code, 2005 procedure; the Code supplies the enforcement / compounding machinery for theft (and, cognately, unauthorised use under Section 126).

SCJ-004 · Ajmal 2015 All HC

SCJ-277 · Anil Kumar Upadhyay 2026 All HC

K-09 Authority to assess theft under Clause 7.3 1 case

The petitioner's prima facie contention that respondent no.3 was not authorized under Clause 7.3(I) to assess electricity theft warranted interim relief; the authority question was never decided (writ dismissed as not pressed). Same authority-to-assess line as SCJ-859, SCJ-900 and SCJ-1566.

SCJ-1977 · Marsood Khan @ Maqsood Khan 2016 All HC

K-10 Clause 8.1 8.2 govern theft assessment not 6.8 1 case

Confirms and applies the specific-over-general canon (from Mohit Paper Mills) that Clauses 8.1/8.2, not Clause 6.8, govern theft-based (s.135) assessment, including the mandatory 15-working-day notice and 1.5x (not 3x) tariff multiplier.

LEAD AUTHORITIES *M/s Mohit Paper Mills Ltd. & Another v. PVVNL & Others*

SCJ-121 · Kunwar Sarvesh Kumar Singh 2011 All HC

K-11 Criminal acquittal does not extinguish electricity assessment 1 case

Acquittal in the criminal theft case does not make the assessment order not survive; acquittal may rest on grounds unrelated to the assessment, and the assessment of charges on account of theft is provided under the Act.

SCJ-1266 · Hind Industries Limited 2013 All HC

K-12 Final assessment requires hearing and finding of theft 1 case

The contentions that Clause 8.1(b) requires an opportunity of being heard and a recorded finding that 'a case of theft has been established' before a Final Assessment were held to 'require consideration' and to warrant interim protection, but were left undecided as the writ became infructuous.

SCJ-1974 · Arun Kumar Goel 2016 All HC

K-13 New connection independent of undetermined theft assessment 1 case

Supply on payment of the estimate is independent of an as-yet-undetermined theft-assessment liability; the licensee cannot withhold a new connection for such an amount under Clause 4.3, but may take security for it.

LEAD AUTHORITIES *Dr. Meena Chaudhary v. BSES Rajdhani Power Ltd.*

SCJ-223 · Virendra Kumar Mittal 2014 All HC

K-14 Owner liable as consumer for theft regardless of tenancy claim 1 case

The s.2(15) 'consumer' definition's broad second limb (premises connected for receiving electricity) extends civil assessment liability for theft to a property owner even where an unsubstantiated tenancy is claimed, though criminal mens rea remains a separate question — an important gloss on who bears assessment liability, complementing this corpus's transferee/occupant-liability cluster (SCJ-090, SCJ-098).

SCJ-121 · Kunwar Sarvesh Kumar Singh 2011 All HC

K-15 Section 56 2 two year bar inapplicable to theft 1 case

The consumer's plea that recovery beyond two years was barred by Section 56(2) was rejected prima facie: the sub-section addresses default in payment of charges, not theft. Same Section 56(2) cluster as SCJ-001, SCJ-406, SCJ-477.

SCJ-1264 · Joginder Singh 2023 All HC

K-16 Surcharge v. theft penalty distinction 1 case

Where power is taken during restricted hours with (implicit or express) permission/acquiescence of the licensee, only the tariff surcharge applies; taking power surreptitiously/by theft during restricted hours instead attracts penalty under the theft provisions, not merely a surcharge.

LEAD AUTHORITIES *Prachi Leathers v. UPPCL*

SCJ-094 · Northern Coalfield Ltd. 2005 All HC

L. Recovery of assessment, citations & the 1958 Act 17 principles · 24 case-applications

When recovery may issue, stay pending appeal, tehsil citations, and collection charges.

L-01 Final s.126 assessment mandatory precondition to recovery citation 5 cases

A recovery citation for electricity dues cannot issue on a provisional assessment; a final assessment order under Section 126(3) - recording service and made by a reasoned order even where no objection is filed - is a mandatory precondition to recovery.

LEAD AUTHORITIES *Vinod Kumar Agarwal v. State of U.P. & Others*

SCJ-895 · Devi Lal @ Tutti Lal 2012 All HC

SCJ-898 · Final s.126(3) assessment mandatory ... 2012 All HC

SCJ-145 · Vinod Kumar Agarwal 2012 All HC

SCJ-1982 · Ramanuj Tripathi 2014 All HC

SCJ-176 · Rakesh 2016 All HC

L-02 No recovery without final assessment Clause 8.1(b) 4 cases

Recovery of Rs.40,856 on a provisional theft assessment, without a speaking final assessment, was stayed as contrary to clause 8.1(b).

SCJ-239 · Tehsildar 2009 All HC

SCJ-737 · Rajendra Prasad 2009 All HC

SCJ-738 · Rajesh Kumar 2009 All HC

SCJ-803 · Rajendra Kumar Gupta 2010 All HC

L-03 Collection charges only on tehsil recovery not direct deposit 1 case

Collection / recovery charges are leviable only where the dues are actually recovered by the Tehsil (revenue) authorities; where the consumer deposits the dues directly with the Electricity Department, no collection charges arise.

SCJ-707 · Baba Ice and Cold Storage Pvt. Ltd. 2010 All HC

L-04 Collection charges waived on timely payment under instalment order 1 case

A writ order granting instalments under Clause 6.14 and waiving collection charges on timely full payment bars recovery of collection charges once the dues are fully paid and the demand notice recalled; recovery thereafter, with arrest and without notice, is malafide and contumacious.

SCJ-707 · Baba Ice and Cold Storage Pvt. Ltd. 2010 All HC

L-05 Demand notice on provisional assessment is illegal 1 case

A demand notice recovering the amount assessed under the provisional assessment order is illegal once a final assessment order has been passed, and is quashed. Same Section 126 assessment cluster as SCJ-047 and SCJ-034.

SCJ-1268 · Rameshwar 2023 All HC

L-06 Ex parte s.126 assessment requires hearing before recovery 1 case

A recovery certificate founded on an ex-parte provisional s.126 assessment, made without following the Supply Code's assessment/hearing procedure, cannot be coercively enforced until the consumer is given a hearing and a reasoned final assessment is passed.

SCJ-084 · Mohd Usman Ansari 2025 All HC

L-07 Fresh recovery arbitrary while representation pending 1 case

Issuing a fresh demand / recovery notice while a Clause 6.5 representation remains undecided is arbitrary; the representation must be decided first and recovery kept in abeyance.

SCJ-254 · Chandrapal 2014 All HC

L-08 No coercive action until final assessment 1 case

As only a provisional assessment had been made, the Court held there was no occasion for coercive action and declined interim protection.

SCJ-1060 · Rukmani Ferro Pvt. Ltd. 2011 All HC

L-09 No double recovery of arrears already realized from erstwhile owner 1 case

The Court observed that, the department having sought recovery from the erstwhile owner, it could receive the amount from the purchaser only if it had not already been realized from the erstwhile owner, and required a status report - guarding against double recovery.

SCJ-1978 · Kumar Audogic Vikas Pvt. Ltd. 2025 All HC

L-10 No objection to provisional assessment validates recovery 1 case

Where the assessee files no objection to a provisional assessment order for unauthorised use, the recovery proceedings are rightly initiated and a writ against the citation fails; the remedy is the Section 127 appeal. Same Section 126/127 cluster as SCJ-1269, SCJ-1266, SCJ-047.

SCJ-1270 · Ram Charan 2015 All HC

L-11 Own installment offer forecloses quashing of recovery 1 case

The petitioner's own letter dated 5.12.2012 offering to pay the corrected demand in 60 installments left no occasion to quash the recovery; the writ was disposed of relegating the installment modalities to the Executive Engineer.

SCJ-1976 · Capital Polymers Industries (P) Ltd. 2018 All HC

L-12 Premises definition scope of recovery 1 case

The Supply Code's 'premises' definition (area/portion sanctioned to a single consumer) bounds the scope of recovery/sealing against a defaulting consumer; disputes about whether a third party's distinct premises were wrongly included are fact-specific and go to the recovery authority (Collector), not the writ court.

SCJ-052 · Birla Aircon 2012 All HC

L-13 Prescribed authority must be notified under 1958 act 1 case

An officer can exercise recovery powers as a 'prescribed authority' under the U.P. Government Electrical Undertakings (Dues Recovery) Act, 1958 only if notified as such; absent notification, s.3 demand notices are invalid.

SCJ-158 · Ashok Kumar & Ors. 2008 All HC

L-14 Recovery citation kept in abeyance pending fresh objection 1 case

On reopening the assessment for objection, the recovery citation was kept in abeyance for two months or till the authority's final decision, which the citation is to abide.

SCJ-1271 · Dinesh Kumar Gupta 2025 All HC

L-15 Recovery must be withdrawn not merely deferred on set aside 1 case

When the final assessment is set aside, the recovery/citation must be withdrawn, not merely 'kept in abeyance' or deferred; deferring it is not compliance with the order.

SCJ-154 · Arup Kumar Mitra 2014 All HC

L-16 Recovery must rest on final assessment order 1 case

Recovery under Section 126 must be founded on the final assessment order, not the provisional assessment; quashing the demand notice leaves the assessee at liberty to challenge the final assessment order separately. Companion to the provisional/final-order point in SCJ-1267.

SCJ-1268 · Rameshwar 2023 All HC

L-17 **Recovery objection goes to assessing authority not executing tehsildar** 1 case

An objection to the correctness of an electricity demand lies before the assessing/electricity authority (or on appeal), not before the executing Tehsildar, who is confined to execution and cannot vary the demand.

LEAD AUTHORITIES [Chandra Kishore Jha v. Mahabir Prasad](#)

SCJ-170 · Heera Lal 2009 All HC

M. Fora — CGRF, Ombudsman, Inspector & Lok Adalat 25 principles · 67 case-applications

Who may decide what: consumer fora, ombudsman limits, Electrical Inspector, PLA.

M-01 **Clause 7.10 forum ombudsman route for billing grievances** 27 cases

Billing grievances against a licensee are to be routed through the Clause 7.10 Consumer Grievance Redressal Forum (and Ombudsman on appeal), a specific licensee-grievance mechanism distinct from and preferred over the general District Consumer Forum route — reinforcing the s.42(5)/(6)-equivalent individual-grievance routing principle already tracked in this corpus (SCJ-076, *MERC v. Reliance Energy*).

SCJ-704 · The Purvanchal Vidyut Vitran Nigam L... 2010	All HC	SCJ-804 · M. Das Binani (Binani Dharmshala) 2010	All HC		
SCJ-096 · Om Prakash 2011	All HC	SCJ-888 · Ekdil Mini Floor Mill 2011	All HC	SCJ-844 · Shamshul Qamar 2011	All HC
SCJ-878 · Bhim Singh 2011	All HC	SCJ-906 · Kalwa Khan 2012	All HC	SCJ-1055 · Basant Lal 2013	All HC
SCJ-197 · Gaya Prasad 2013	All HC	SCJ-1137 · Parvez Akhtar 2014	All HC	SCJ-1252 · Ved Prakash 2014	All HC
SCJ-1280 · Chandra Shekhar Tiwari 2014	All HC	SCJ-1338 · Dharmendra Singh 2015	All HC	SCJ-1444 · Abdul Kalaam 2016	All HC
SCJ-1981 · AVS Roto Pack Pvt. Ltd. & Another 2016	All HC	SCJ-1605 · Santosh Stationary (P) Ltd. 2017	All HC		
SCJ-1912 · S.N. Singh 2018	All HC	SCJ-1798 · Kasturi Bai Gopi Babu Cold Storage P... 2018	All HC		
SCJ-1860 · Maa Narheji Agro Industries 2018	All HC	SCJ-1893 · Pawan Putra Ice And Cold Storage 2018	All HC		
SCJ-217 · Veerendra Kumar Jain 2019	All HC	SCJ-1961 · Rahul Tiwari 2019	All HC		
SCJ-667 · Devi Charan Cold Storage Tirwa 2019	All HC	SCJ-350 · Amar Nath Vidya Ashram & Anr. 2025	All HC		
SCJ-384 · Madan Kumar Vishkerma 2025	All HC	SCJ-105 · Priya Prem 2025	All HC	SCJ-400 · Akanksha Steels Pvt. Ltd. 2025	All HC

M-02 **Ombudsman cannot direct contrary to act and code** 9 cases

An Electricity Ombudsman award that waives tariff charges, or otherwise directs the licensee to act against the Electricity Act, 2003 and the Supply Code, 2005, is without authority and is set aside. Applied via Narinder Chand Hem Raj; no direction against the provisions of the Act and the Code.

LEAD AUTHORITIES *Narinder Chand Hem Raj v. Lt. Governor, Himachal Pradesh; U.P. Power Corporation Ltd. v. Ombudsmen and 2 others (Writ-C No. 1003603...*

SCJ-699 · Dakshinanchal Vidyut Vitran Nigam Lt... 2022 AII HC	SCJ-700 · U.P. Power Corp. Ltd. Through Execut... 2023 AII HC
SCJ-701 · U.P. Power Corp. Ltd. Through Execut... 2023 AII HC	SCJ-702 · U.P. Power Corp. Ltd. Through Execut... 2023 AII HC
SCJ-490 · U.P. Power Corp. Ltd. Through Execut... 2025 AII HC	SCJ-491 · U.P. Power Corp. Ltd. Through Execut... 2025 AII HC
SCJ-492 · U.P. Power Corp. Ltd. Through Execut... 2025 AII HC	SCJ-493 · U.P. Power Corp. Ltd. Through Execut... 2025 AII HC
SCJ-494 · U.P. Power Corp. Ltd. Through Execut... 2025 AII HC	

M-03 **Code forum not for tortious damages** 3 cases

The Code's grievance forum (CGRF/Ombudsman) and the Act's overriding clause do not cover a claim of tortious damages for wrongful disconnection; such claims lie before the Lok Adalat / consumer fora.

LEAD AUTHORITIES *Bar Council of India v. Union of India; United India Insurance Co. Ltd. v. Ajay Sinha; S.N. Pandey v. Union of India*

SCJ-015 · Dakshinanchal Vidyut Vitran Nigam Lt... 2012 AII HC	SCJ-025 · Executive Engineer, Electricity Dist... 2018 AII HC
SCJ-019 · Divisional Engineer, Electricity Dis... 2018 AII HC	

M-04 **Bill correctness under Clause 6.5 not CGRF or ombudsman** 2 cases

Prima facie, the correctness of a consumption / supplementary bill is challengeable only under clause 6.5 of the Supply Code; the CGRF and the Electricity Ombudsman lack competence over bill-correctness (*Anis Ahmad*). Same *Anis Ahmad* line as SCJ-1561; cf. SCJ-049 and SCJ-256 on the limits of CGRF / Ombudsman competence.

LEAD AUTHORITIES *U.P. Power Corporation Ltd. v. Anis Ahmad*

SCJ-1822 · Ram Autar Singh 2018 AII HC	SCJ-1565 · Paschimanchal Vidyut Vitran Nigam Lt... 2023 AII HC
---	---

M-05 CGRF jurisdiction covers billing and tariff disputes 2 cases

The CGRF under Section 42(5) EA2003 and the UPERC 2007 Regulations can decide a consumer's excess / wrong-billing and tariff-interpretation grievance; the restrictive 'grievance' definition in Reg. 2(n) does not oust it because 'complaint' in Reg. 2(e) is wide. Cf. the CGRF / Ombudsman-jurisdiction line in SCJ-256 and SCJ-049.

SCJ-1562 · Shree Gopala Iron (India) Ltd. & Anr. 2012 All HC

SCJ-1983 · Executive Engineer, Electricity Rura... 2017 All HC

M-06 Consumer forum lacks jurisdiction over s.126 s.135 140 matters 2 cases

Landmark bar on Consumer Protection Act jurisdiction over Electricity Act s.126 assessment and s.135-140 theft/interference offences, distinguishing 'saving' of the CP Act's general applicability (ss.173-175) from an affirmative grant of jurisdiction over matters outside the CP Act's own 'complaint' definition — a foundational precedent for this corpus's forum-jurisdiction cluster, complementing SCJ-138's Ombudsman-status ruling and clarifying which remedies (appeal under...

LEAD AUTHORITIES *U.P. Power Corporation Ltd. vs. Anis Ahmad*

SCJ-139 · U.P. Power Corporation Ltd. & Ors. 2013 SC

SCJ-406 · Managing Director, D.V.V. Nigam Ltd.... 2025 All HC

M-07 Individual grievance via s.42 not commission 2 cases

A State Electricity Regulatory Commission cannot adjudicate individual consumers' billing grievances or issue a blanket refund direction without a proper s.128 investigation; individual grievances go through the s.42(5) Forum and s.42(6) Ombudsman.

SCJ-076 · Maharashtra Electricity Regulatory C... 2007 SC

SCJ-1594 · Obedue Rahaman Khan 2017 All HC

M-08 Ombudsman award challengeable only on s.34 arbitration grounds 2 cases

An Electricity Ombudsman's award is akin to an arbitral award, challengeable only on grounds similar to s.34 of the Arbitration and Conciliation Act, 1996; a conciliated settlement is challengeable only for want of jurisdiction or fraud.

LEAD AUTHORITIES *Purvanchal Vidyut Vitran Nigam Ltd. v. Vidyut Lokpal (Electricity Ombudsman)*

SCJ-260 · Purvanchal Vidyut Vitran Nigam Ltd.,... 2008 All HC

SCJ-258 · Executive Engineer, Electricity Urba... 2010 All HC

M-09 Ombudsman remedy consumer only 2 cases

Confirms, on Clause 7.10 of the Supply Code and Section 42(5)-(7), that only the consumer (not the licensee) may approach the CGRF/Ombudsman — an independent DB ruling reaching the same conclusion later confirmed by the Full Bench in Kisan Cold Storage (SCJ-043) construing the parallel UPERC Regulations, 2007 provision.

LEAD AUTHORITIES *Jindal Poly Films Limited v. U.P. Electricity Regulatory Commission*

SCJ-050 · M.K. Pathak, Executive Engineer 2018 All HC

SCJ-043 · Kisan Cold Storage & Ice Factory 2019 All HC

M-10 CGRF no jurisdiction over transmission line accident property loss 1 case

The CGRF cannot award compensation for property loss from a transmission-line accident; its jurisdiction covers supply/billing/tariff grievances, not accident-related property damage.

SCJ-256 · Suresh Chand Bansal 2014 All HC

M-11 CGRF ombudsman no jurisdiction over s.126 1 case

CGRF/Ombudsman (creatures of subordinate regulation) have no jurisdiction to review a statutory Assessing Officer's Section 126 assessment or a Section 127 appellate order; the only remedy against such an assessment is under Sections 126/127 themselves. Anchors the later Full Bench holding (SCJ-043 Kisan Cold Storage) that the Ombudsman/CGRF scheme is a distinct consumer-grievance track confined to matters outside Sections 126/127/135 etc.

LEAD AUTHORITIES *Dakshinanchal Vidyut Vitran Nigam Ltd. v. Vidyut Lokpal, Lucknow*

SCJ-049 · M.D., Pakshimanchal Vidyut Vitran Ni... 2012 All HC

M-12 Change of forum not mere procedure 1 case

A change of forum is not a matter of pure procedure; once proceedings are validly initiated before a forum, that vested right continues despite a later change of jurisdiction, unless the legislature clearly provides otherwise.

LEAD AUTHORITIES *CIT v. R. Sharadamma*; *CIT v. Dhadi Sahu*

SCJ-008 · Aruna Bhargava 2012 All HC

M-13 Civil court barred s.145 for s.126 assessment 1 case

Section 145 bars the civil court from entertaining a suit challenging a s.126 assessment; the Electricity Act is a complete Code and s.9 CPC excludes such jurisdiction.

SCJ-207 · Executive Engineer, Distribution Div... 2017 All HC

M-14 Electricity ombudsman not appellate authority nor tribunal 1 case

Establishes the Electricity Ombudsman's institutional character under s.42(6) as an ADR/quasi-judicial grievance-redressal mechanism, not an Appellate Authority or Tribunal, given the absence of finality (Regulation 12.8's 'any Court or Tribunal' access) and the absence of judicial 'trappings of a Court' — significant for characterising the Ombudsman's role and for procedural questions (appealability, superintendence) arising from Ombudsman awards throughout this corpus's...

LEAD AUTHORITIES *Union of India v. R. Gandhi, President, Madras Bar Association*; *Shiv Shakti Cooperative Housing Society v. Swaraj Developers*

SCJ-138 · U.P. Power Corporation Limited Thru'... 2010 All HC

M-15 Lok adalat cannot direct action contrary to code 1 case

A Lok Adalat cannot direct the licensee to grant a connection in a manner contrary to the Act and the Supply Code.

SCJ-249 · Dakshinanchal Vidyut Vitran Nigam Lt... 2016 All HC

M-16 Meter correctness dispute referred to electrical inspector 1 case

Absent any allegation of theft or tampering, a dispute about whether a meter records correctly must be decided by the Electrical Inspector (s.26(6) IEA 1910), who alone may estimate consumption and fix the amount; the licensee cannot self-assess. The 2003 regime carries a parallel scheme (Code 2005, Clauses 5-6).

LEAD AUTHORITIES *Madhya Pradesh Electricity Board v. Smt. Basantibai*

SCJ-167 · U.P. Rajya Vidyut Parishad 2015 All HC

M-17 Mixed feeder not independent feeder ombudsman cannot override code 1 case

A mixed feeder serving multiple unrelated consumers is not an 'independent feeder' under Clause 2.2(ff); an Electricity Ombudsman award directing supply via a mixed feeder in derogation of Clause 3.4(a) exceeds Regulation 11 jurisdiction and is quashed.

LEAD AUTHORITIES *Punjab State Electricity Board v. Vishwa Calibere Builders Pvt. Ltd.*

SCJ-123 · Sigma Castings Ltd. & Another 2013 All HC

M-18 Ombudsman cannot withdraw unappealed CGRF relief 1 case

On a consumer's representation, the Electricity Ombudsman cannot take away part of the relief CGRF had granted when the licensee filed no appeal. Unchallenged CGRF relief is final between the parties (Authorised Officer (Land Reforms)); CGRF on remand is equally barred from withdrawing it.

LEAD AUTHORITIES *Authorised Officer (Land Reforms) v. M.M. Krishnamurthy Chetty*

SCJ-552 · Prakash Chandra Gupta 2024 All HC

M-19 Ombudsman may infer defective meter from consumption pattern 1 case

Where the licensee never asked the Ombudsman to have the meter checked, the Ombudsman may still treat the meter as defective on the licensee's own records and an unexplained more-than-tenfold consumption spike, and direct average billing; the writ court will not interfere with that reasoned award.

SCJ-704 · The Purvanchal Vidyut Vitran Nigam L... 2010 All HC

M-20 Permanent lok adalat jurisdiction over public utility electricity grievance 1 case

A Permanent Lok Adalat may entertain a consumer's grievance over refusal of an electricity connection; its jurisdiction is in addition to, not in derogation of, the Act's fora.

LEAD AUTHORITIES *Bar Council of India v. Union of India*

SCJ-249 · Dakshinanchal Vidyut Vitran Nigam Lt... 2016 All HC

M-21 Permanent lok adalat no adjudicatory jurisdiction over theft offence 1 case

A Permanent Lok Adalat may conciliate but cannot adjudicate on merits a dispute relating to electricity theft; s.22-C(8) ousts adjudicatory jurisdiction over any offence-related dispute regardless of compoundability or whether an FIR was lodged.

LEAD AUTHORITIES *Torrent Power Ltd. v. State of U.P.*

SCJ-159 · Pashchimanchal Vidyut Vitran Nigam L... 2018 All HC

M-22 Plea of jurisdiction can be raised at any stage 1 case

A plea that the civil court lacks jurisdiction (here under s.145) can be raised at any stage of the proceedings, even after years, since every court must satisfy itself of its jurisdiction.

SCJ-207 · Executive Engineer, Distribution Div... 2017 All HC

M-23 S.26 6 confined to meter correctness not bill disputes 1 case

The Electrical Inspector's s.26(6) jurisdiction is limited to a live meter-correctness dispute; it does not extend to disputes over bills or to theft/fraud/tampering assessments.

LEAD AUTHORITIES *Bombay Electricity Supply and Transport Undertaking v. Laffans (India) (P)...*

SCJ-262 · I.G. Shoes Pvt. Ltd. 2016 All HC

M-24 S.26 6 inapplicable to fraud tampering disputes 1 case

Confirms the well-settled distinction (M.P. Electricity Board v. Basantibai; Rupa Ice Factory; Sub-Divisional Officer (P), UHBVNL v. Dharam Pal) that s.26(6) of the 1910 Act, confined to genuine meter-correctness disputes referable to an Electrical Inspector, has no application to fraud/tampering allegations, which are instead governed by the licensee's own statutory Supply Code tampering provisions — directly relevant to this corpus's meter-tampering/theft-assessment...

LEAD AUTHORITIES *Madhya Pradesh Electricity Board & Ors. v. Smt. Basantibai; State of W.B. v. Rupa Ice Factory (P) Ltd.*

SCJ-151 · Western Electricity Supply Co. of Or... 2014 SC

M-25 Statutory forum cannot relegate to arbitration 1 case

A statutory consumer grievance forum (CGRF/Ombudsman) must decide the consumer's dispute on merits and cannot abdicate by relegating the parties to an arbitration clause; the statutory remedy is additional, by right of election, not ousted by the agreement.

LEAD AUTHORITIES *Gujarat Urja Vikas Nigam Ltd. v. Essar Power Ltd.*

SCJ-026 · Executive Engineer, Electricity Urba... 2014 All HC

N. Appeals (s.127) & statutory remedies 15 principles · 23 case-applications

The section 127 appeal, independent judgment, pre-deposit, and the vested right of appeal.

N-01 Recovery of assessment stayed pending s.127 appeal 4 cases

Where an earlier order permitted a s.127 appeal on a part-deposit and restrained recovery pending the appeal, the licensee cannot recover the assessment while the appeal is undecided and no stay has been granted against that restraint.

SCJ-218 · Paliwal Alloys (Pvt.) Ltd. 2009 All HC

SCJ-673 · Sijaria Ice Gramodhyog Sultanpura & ... 2010 All HC

SCJ-329 · Gauri Prasad 2026 All HC

SCJ-305 · Saurabh Agarwal 2026 All HC

N-02 S.127 appellate authority must exercise independent judgment 4 cases

An Appellate Committee that does not decide the checking report or the assessment, and rests the appeal on a counsel's concession of theft recorded only in the operative portion and disputed as unauthorised, has not independently adjudicated; the order is quashed.

LEAD AUTHORITIES *Himalayan Coop. Group Housing Society v. Balwan Singh*

SCJ-640 · Venus Stone Crushing Co. Thru' Partn... 2010 All HC

SCJ-673 · Sijaria Ice Gramodhyog Sultanpura & ... 2010 All HC

SCJ-126 · Vimla Tiwari 2012 All HC

SCJ-635 · Ranjana Gupta 2019 All HC

N-03 Alternate remedy Section 127 appeal bars writ 2 cases

A theft-assessment challenge is relegated to the statutory appeal under Section 127 and the Area Level Committee; a writ kept pending for nine years without using that remedy is an abuse of process. Same Section 127 cluster as SCJ-069, SCJ-163.

SCJ-1266 · Hind Industries Limited 2013 All HC

SCJ-1538 · Chotu Service And Washing Center 2016 All HC

N-04 Final assessment order relegates assessee to Section 127 appeal 2 cases

Once a theft case is registered and a final assessment order passed, the writ challenging the assessment is dismissed and the assessee relegated to the Section 127 appeal with all grounds open. Same Section 127 cluster as SCJ-1266, SCJ-047.

SCJ-1269 · Ashok Kumar Ajmera 2012 All HC

SCJ-1538 · Chotu Service And Washing Center 2016 All HC

N-05 Appellate authority cannot exceed limited remand 1 case

On a limited remand, the appellate authority is confined to the remitted question and cannot reverse findings of the remanding court that have attained finality.

SCJ-179 · Paschimanchal Vidyut Vitaran Nigam L... 2015 All HC

N-06 Appellate authority must give reasons for disagreeing with acquittal 1 case

An appellate authority cannot dismiss the appeal without considering a final criminal acquittal or recording reasons for not agreeing with it; doing so is perverse.

SCJ-247 · Citi Hotel 2009 All HC

N-07 Exorbitant assessment makes appeal remedy onerous 1 case

The plea that an exorbitant re-assessment renders the statutory appeal onerous (50% pre-deposit) was held to need consideration; the writ was entertained and not thrown out at the interim stage on the alternative-remedy ground, though the respondents contended that an appeal lies.

SCJ-1564 · Nandu Engineering Works & Anr. 2012 All HC

N-08 Licensee must redirect misaddressed appeal to appellate authority 1 case

A plea that the consumer's representation/appeal was not addressed to the proper authority does not justify inaction. The licensee must inform the consumer or re-direct the papers to the Appellate Authority.

SCJ-329 · Gauri Prasad 2026 All HC

N-09 No final order defeats Section 127 appeal 1 case

Where no Final Assessment Order under Section 126 is passed, the assessee is prima facie deprived of the Section 127 appeal, warranting interim protection against recovery. Related to the Section 127 remedy considered in SCJ-1266.

SCJ-1267 · Abdul Gaffar @ G. Hussian 2017 All HC

N-10 No writ interference with s.127 appellate quantum 1 case

The writ court will not re-examine the quantum of a s.126 assessment that the s.127 appellate authority has considered and reduced; the consumer's remedy is to comply, not to re-litigate the amount in writ.

SCJ-205 · Mahboob Ahmad 2017 All HC

N-11 Relegation to Section 127 appeal on merits limitation not examined 1 case

On relegating a belated assessee to the Section 127 appeal, the writ court may fix a time to appeal and direct the appellate authority to decide on merits without going into limitation, neutralising the delay.

SCJ-1270 · Ram Charan 2015 All HC

N-12 S.127 appeal lies only against final order not provisional assessment 1 case

An appeal under Section 127 is maintainable only against a final order under Section 126; a provisional assessment (even a revised one issued during the appeal, on which no final order is passed) is not appealable, requires no amendment of the memo of appeal, and does not render the pending appeal infructuous.

SCJ-1059 · Paschimanchal Vidyut Vitran Nigam Lt... 2010 All HC

N-13 S.127 appellate power co extensive competent to decide theft 1 case

As Section 127 prescribes no parameters for deciding the appeal, the appellate authority's power is co-extensive with the assessing authority's and it is competent to decide whether the case is one of theft (para 8.1, Supply Code 2005) or unauthorised use (para 6.8); a reasoned finding is not disturbed in writ merely because a second view is possible.

SCJ-1059 · Paschimanchal Vidyut Vitran Nigam Lt... 2010 All HC

N-14 Section 127 6 interest 16 percent compounded semiannually 1 case

Section 127(6) provides interest at 16% per annum compounded every six months on the assessed amount; interest is a necessary corollary to retention of the amount, neither penal nor confiscatory (Wig Brothers).

LEAD AUTHORITIES *Wig Brothers (Builders & Engineers) (P) Ltd. & Anr. v. Union of India & Ors.*

SCJ-1266 · Hind Industries Limited 2013 All HC

N-15 Vested right of appeal at initiation 1 case

The right of appeal is a substantive right that vests when the original (here, assessment) proceedings are initiated, governed by the law then in force, and is not taken away by a later statute unless expressly or by necessary intendment; a new pre-deposit condition cannot be imposed on such a vested appeal.

LEAD AUTHORITIES *Garikapati Veeraya v. N. Subbiah Choudhry; Ramesh Singh v. Cinta Devi; Shiv Shakti Coop. Housing Society v. Swaraj Developers*

SCJ-008 · Aruna Bhargava 2012 All HC

O. Writ, alternative remedy & public-law doctrines 44 principles · 102 case-applications

Article 226, Whirlpool exceptions, relegation, laches, clean hands, and costs.

O-01 Relegate to statutory remedy 22 cases

Where the statutory appeal under Section 127 against a final assessment is available and has been invoked, the parties are relegated to it (with maintainability/limitation left to the appellate authority) rather than to writ/appellate interference on merits.

LEAD AUTHORITIES *Executive Engineer, SOUTHCO v. Sri Seetaram Rice Mill*

- | | | |
|--|--|--|
| SCJ-213 · Awadhesh Kumar Yadav 2008 All HC | SCJ-011 · Chairman, West Bengal State Electric... 2008 SC | |
| SCJ-677 · Amna Khatoon 2010 All HC | SCJ-235 · Foran Singh 2011 All HC | SCJ-023 · Santosh Kumar Awasthi 2011 All HC |
| SCJ-242 · Gopali 2012 All HC | SCJ-013 · Chandrika 2013 All HC | SCJ-224 · Moolchand Saini 2013 All HC |
| SCJ-163 · Jai Laxmi Cement Company Ltd. 2013 All HC | SCJ-168 · Mohd. Daud 2013 All HC | |
| SCJ-198 · Mamta Devi Srivastava 2014 All HC | SCJ-240 · Ishwar Chandra 2016 All HC | SCJ-238 · Mamata Verma 2017 All HC |
| SCJ-200 · Ram Padarath Gupta 2017 All HC | SCJ-195 · Bharat Bhati 2018 All HC | SCJ-215 · Vikas Gupta & Another 2018 All HC |
| SCJ-234 · Shashi Bhushan Singh 2023 All HC | SCJ-275 · Jama Begum 2026 All HC | SCJ-276 · Devendra Nath Dubey 2026 All HC |
| SCJ-287 · Sanjay Kumar 2026 All HC | SCJ-329 · Gauri Prasad 2026 All HC | SCJ-305 · Saurabh Agarwal 2026 All HC |

O-02 Alternative remedy relegation 14 cases

Confirms and applies the alternative-remedy line (cf. SCJ-040 Kapil Gupta): a writ against a Section 126 assessment is entertained only on a genuine jurisdictional/natural-justice/fundamental-rights challenge; where objections have already been considered by the assessing authority and only the correctness of the assessment on facts/procedure is disputed, the petitioner is relegated to the Section 127 appeal, per Southco v. Sri Seetaram Rice Mill (SCJ-041).

LEAD AUTHORITIES *Ashok Kumar v. State of U.P.; M/s Popcorn Entertainment v. City Industrial Development Corporation; Executive Engineer, Southern Electricity Supply Company of Orissa Ltd....; Ashok Kumar & Others v. State of U.P. & Others*

- | | | |
|--|--|--|
| SCJ-242 · Gopali 2012 All HC | SCJ-224 · Moolchand Saini 2013 All HC | SCJ-654 · Abdul Shakoor 2013 All HC |
| SCJ-040 · Kapil Gupta 2014 All HC | SCJ-061 · Om Ice Factory Thru' Its Partner Sat... 2014 All HC | |
| SCJ-1980 · Chandrawati Singh 2015 All HC | SCJ-636 · Maula Bux 2016 All HC | |
| SCJ-663 · Om Sons India Handicraft Manufacture... 2017 All HC | SCJ-384 · Madan Kumar Vishkerma 2025 All HC | |
| SCJ-400 · Akanksha Steels Pvt. Ltd. 2025 All HC | SCJ-375 · Chakradhari Cold Storage Pvt. Ltd. 2025 All HC | |
| SCJ-478 · R.D. Ice & Cold Storage (P) Ltd. 2025 All HC | SCJ-398 · Nagendra Singh Gautam 2025 All HC | |
| SCJ-305 · Saurabh Agarwal 2026 All HC | | |

O-03 Disputed questions of fact not adjudicable under article 226 8 cases

Whether the purchasers obtained the connection by a false declaration in the vendor's name is a disputed question of fact. Prima facie the sale deed supported the vendor, but the Court held it not prudent to decide the issue in writ jurisdiction.

- | | | |
|---|---|--|
| SCJ-677 · Amna Khatoon 2010 All HC | SCJ-634 · Roop Narayan Tripathi 2011 All HC | SCJ-698 · Raj Kumar 2013 All HC |
| SCJ-240 · Ishwar Chandra 2016 All HC | SCJ-1981 · AVS Roto Pack Pvt. Ltd. & Another 2016 All HC | |
| SCJ-667 · Devi Charan Cold Storage Tirwa 2019 All HC | SCJ-653 · Awadhesh Pratap 2019 All HC | |
| SCJ-363 · Laxmi Chaurasiya 2025 All HC | | |

O-04 Whirlpool exceptions to alternative remedy bar 6 cases

A s.127 appeal is no bar to a writ where the assessment is challenged for violation of natural justice; alternative remedy is a rule of discretion, not an absolute bar (fundamental rights, natural justice, want of jurisdiction, vires).

LEAD AUTHORITIES *Whirlpool Corporation v. Registrar of Trade Marks, Mumbai*; *Executive Engineer v. M/s Sri Seetaram Rice Mill*

SCJ-112 · Sanjay Rizvi 2012 **All HC**

SCJ-163 · Jai Laxmi Cement Company Ltd. 2013 **All HC**

SCJ-153 · Mohd. Sagir 2014 **All HC**

SCJ-165 · Kamil 2016 **All HC**

SCJ-644 · Mahavir Iron Foundry And Another 2023 **All HC**

SCJ-380 · Satyam Shukla 2025 **All HC**

O-05 Approbate and reprobate bars selective repudiation 3 cases

A party who accepts the beneficial parts of an instrument (here, a Transfer Memorandum/Sale Certificate incorporating lease covenants) cannot simultaneously repudiate its burdens — the doctrine of election/estoppel against approbating and reprobating.

LEAD AUTHORITIES *R.N. Gosain v. Yashpal Dhir*

SCJ-181 · Amrita Arya 2018 **All HC**

SCJ-098 · Palika Towns LLP 2022 **All HC**

SCJ-302 · Spencer Retail Limited 2026 **All HC**

O-06 Alternative remedy not a bar after long pendency 2 cases

A writ entertained with completed pleadings, an interim order and years of pendency should be decided on merits rather than dismissed for the statutory appeal; the alternative-remedy bar is self-imposed discipline, not a jurisdictional bar.

LEAD AUTHORITIES *Durga Enterprises (P) Ltd. v. Principal Secretary, Govt. of U.P.*; *Roshan Lal v. State of U.P.*

SCJ-164 · Parmarth Steels & Alloys (Pvt.) Ltd.... 2013 **All HC**

SCJ-406 · Managing Director, D.V.V. Nigam Ltd.... 2025 **All HC**

O-07 Clean hands required material concealment bars writ 2 cases

Suppression of a material fact — here an adverse civil-court finding on the petitioner's tenancy relevant to the connection claim — disentitles the petitioner to discretionary writ relief.

SCJ-633 · Anil Shastri 2011 **All HC**

SCJ-171 · Vandana Srivastava 2017 **All HC**

O-08 Interim restoration on security pending fresh assessment 2 cases

Where a defective assessment is set aside for procedural non-compliance, the Court may order interim restoration of supply on the consumer furnishing security, subject to the outcome of a properly conducted fresh assessment.

SCJ-1063 · Vijay Krishna Agrawal & Anr. 2010 **All HC**

SCJ-087 · Mrs Rajendra Kumar Sharma 2024 **All HC**

O-09 Mandamus cannot override statutory distribution scheme 2 cases

A writ of mandamus or an Article 142 direction to supply/continue supply cannot displace the substantive priority scheme of ss.529, 529-A and 530; residuary powers are supplementary, not a means to ignore statute.

LEAD AUTHORITIES *Textile Labour Association v. Official Liquidator*; *Supreme Court Bar Association v. Union of India*

SCJ-152 · U.P. State Cement Corporation Ltd. (... 2007 **All HC**

SCJ-355 · Mohammad Afsar Khan And Another 2025 **All HC**

O-10 Own wrong maxim 2 cases

Applied against a distribution licensee: the procedural prerequisite (amending the agreement) is deemed waived within a reasonable time of the consumer's request.

LEAD AUTHORITIES *M.K. Shah Engineers & Contractors v. State of M.P.*; *Kusheshwar Prasad Singh v. State of Bihar*; *Mrutunjay Pani v. Narmada Bala Sasmal*; *Chairman, SBI v. M.J. James*; *Nirmala Anand v. Advent Corporation (Pvt.) Ltd.*

SCJ-001 · Indian Oil Corporation Ltd. 2024 **All HC**

SCJ-406 · Managing Director, D.V.V. Nigam Ltd.... 2025 **All HC**

O-11 Right to electricity Art. 21 2 cases

Supply of electricity is necessary for a life with dignity; disconnection for reasons not authorised by the Act/Code, for mala fide purposes, violates Article 21.

SCJ-016 · Devendra Sharma 2011 **All HC**

SCJ-020 · Divya Sahani 2021 **All HC**

O-12 **Waiver requires full knowledge of right** 2 cases

A consumer who was never informed of the Clause 5.6(c)(iii) testing option cannot be deemed to have waived it; waiver is an intentional act done with full knowledge of the right, and there is no presumption that everyone knows the law.

LEAD AUTHORITIES *Moti Lal Padampat Sugar Mills Ltd. v. State of U.P.*; *M/s Moti Lal Padampat Sugar Mills Ltd. v. State of U.P.*

SCJ-162 · Amrawati Devi 2009 **All HC**

SCJ-153 · Mohd. Sagir 2014 **All HC**

O-13 **Want of prosecution dismissal vacates interim stay** 2 cases

On 2.8.2024 the writ was dismissed as infructuous for want of prosecution and the interim order stood vacated; the same posture as SCJ-1565, though here the dismissal was subsequently recalled and the interim protection revived on restoration.

SCJ-1975 · Sisco Industries Ltd. 2012 **All HC**

SCJ-1565 · Paschimanchal Vidyut Vitran Nigam Lt... 2023 **All HC**

O-14 **Writ dismissed as infructuous with liberty to move afresh** 2 cases

Although the deposit was made and the petitioner asserted the writ had not become infructuous, the Registry's 'likely to be infructuous' classification drew no objection and the petition was dismissed as infructuous with liberty to move the Court afresh if the cause of action survives — no merits decision.

SCJ-1975 · Sisco Industries Ltd. 2012 **All HC**

SCJ-1974 · Arun Kumar Goel 2016 **All HC**

O-15 **Writ will not adjudicate bill if undisputed part unpaid** 2 cases

A surcharge / Clause 6.5(b)(i) grievance will not be examined in writ if the consumer refuses to deposit the billed amount less the disputed surcharge, as previously directed.

SCJ-653 · Awadhesh Pratap 2019 **All HC**

SCJ-281 · Parvati Devi 2026 **All HC**

O-16 **Acquiescence cuts both ways** 1 case

Bars the consumer's refund of charges paid without demur and the licensee that only raised bills, never pursuing statutory recovery (s.52 noted).

SCJ-001 · Indian Oil Corporation Ltd. 2024 **All HC**

O-17 **Alternate remedy and laches bar writ** 1 case

Availability of a statutory appeal to the AAIFR under Section 25 SICA and a four-to-five-year delay were each a sufficient ground to decline writ jurisdiction.

SCJ-1061 · U.P. Power Corporation Ltd. 2019 **All HC**

O-18 **Alternative remedy efficacious absent onerous predeposit** 1 case

The onerous-deposit / limitation exceptions (*J.M. Baxi, Shantilal & Co.*) do not apply where the statutory forum requires no deposit of the whole demand (only 50% for interim relief) and the demand is not time-barred; the consumer is relegated to the forum. Same relegation-of-a-billing-dispute line as SCJ-636 and SCJ-1561.

LEAD AUTHORITIES *J.M. Baxi & Co. v. Commissioner of Customs, New Kandla*

SCJ-1562 · Shree Gopala Iron (India) Ltd. & Anr. 2012 **All HC**

O-19 **Amendment allowed does not mean prayer allowed** 1 case

Allowing the amendment application that introduced the Clause 6.15 limitation ground did not amount to allowing the prayer; the limitation merits were left to be raised before the authority.

SCJ-1976 · Capital Polymers Industries (P) Ltd. 2018 **All HC**

O-20 Consumer cannot blame licensee for consequences of own delay 1 case

A disconnection following the consumer's own delay in invoking the Clause 6.5 remedy is attributable to him, not the licensee.

SCJ-253 · Mohammad Khalid 2014 All HC

O-21 Cost on electricity department for casual non compliance 1 case

Rs.2,00,000 cost was imposed on the Electricity Department, deprecating its 'callous, indifferent and casual attitude' in not filing a counter affidavit despite a peremptory order, the amount remitted to the Advocate Association for lawyer welfare and the Executive Engineer directed to appear in person.

SCJ-1976 · Capital Polymers Industries (P) Ltd. 2018 All HC

O-22 Cost on frivolous state instrumentality litigation 1 case

A State instrumentality challenging a modest consumer-protection award for its own default, without any error apparent on the record, prosecutes frivolous and vexatious litigation liable to be dismissed with cost; departmental action against the defaulting officials is the proper course.

SCJ-1265 · Kanpur Electricity Supply Company Lt... 2011 All HC

O-23 Delay laches bar similarly situated claim 1 case

Delay/laches of decades bars a consumer from claiming the benefit of a favourable judgment obtained by other, timely litigants on the same point.

LEAD AUTHORITIES *New Delhi Municipal Council v. Pan Singh & Others; Yunus v. State of Maharashtra & Others*

SCJ-068 · Three Star Paper Mills Pvt. Ltd. 2018 All HC

O-24 Interim connection on bank guarantee for disputed arrears 1 case

Interim relief took the form of a fresh connection granted on the petitioner furnishing a bank guarantee for the disputed arrears, expressly subject to the decision of the writ, with future dues to be paid.

SCJ-1978 · Kumar Audogic Vikas Pvt. Ltd. 2025 All HC

O-25 Interim order lapses on expiry 1 case

A time-bound interim protection order automatically lapses on expiry of its term; a consumer cannot rely on its continued existence, or on an unrelated pending application, to justify years of non-payment of an assessed sum.

SCJ-055 · Hind Industries Limited 2011 All HC

O-26 Interim protection preserving pre existing uninterrupted supply 1 case

On a prima facie challenge to a Clause 4.27 registration/100% base-demand-charge demand, the Court stayed the licensee's communication and directed that the industrial consumer continue to receive the uninterrupted supply at scheduled rates it had enjoyed under the 2004 Industrial Policy since 2004 - an interim arrangement leaving the merits open.

SCJ-1975 · Sisco Industries Ltd. 2012 All HC

O-27 Interim restoration on part payment pending assessment challenge 1 case

Pending a challenge that a re-assessment was not computed per clause 8.2 of the Supply Code, the court restored the disconnected supply on part-payment (Rs.10 lakh) and deposit of current bills, with no coercive action - an interim arrangement leaving the merits open. Same interim-restoration-on-deposit posture as SCJ-1063 and SCJ-206.

SCJ-1564 · Nandu Engineering Works & Anr. 2012 All HC

O-28 Interim stay of final assessment on part deposit 1 case

On a prima facie Clause 8.1(b) challenge to a Final Assessment (no hearing; no finding that theft established) the Court found the matter required consideration and stayed proceedings under the Final Assessment Order subject to a Rs. 1,20,000 part-deposit, the order to vacate automatically on default — the same interim-stay-on-deposit posture as SCJ-1564 and SCJ-206.

SCJ-1974 · Arun Kumar Goel 2016 All HC

O-29 Interim stay of theft assessment on bank guarantee of half 1 case

Following the leading writ petition, the interim stay of the provisional assessment was made conditional on the consumer furnishing a bank guarantee of half the provisional bill, realisable only after finalisation and only to the extent the final amount exceeded it, with future charges to be paid meanwhile.

SCJ-1977 · Marsood Khan @ Maqsood Khan 2016 All HC

O-30 No mandamus to enforce order without jurisdiction 1 case

A writ court will not issue a mandamus to enforce an order that is without jurisdiction and a nullity.

SCJ-262 · I.G. Shoes Pvt. Ltd. 2016 All HC

O-31 No negative equality in electricity supply decisions 1 case

A licensee's prior mistaken/inadvertent supply of another similarly-situated consumer via a non-compliant route cannot be invoked to compel repetition of that illegality for a different consumer — Article 14 does not guarantee negative equality.

LEAD AUTHORITIES *Chandigarh Administration v. Jagjit Singh*; *State of Orissa v. Mamata Mohanty*

SCJ-123 · Sigma Castings Ltd. & Another 2013 All HC

O-32 No promissory estoppel against statute 1 case

The licensee could not be held to a surcharge-exemption promise that would breach Section 24 of the Reforms Act; there is no estoppel against a statute, and a concession can be withdrawn in public interest.

LEAD AUTHORITIES *Sharma Transport v. Government of A.P.*

SCJ-155 · Saini Alloys Pvt. Ltd. 2006 All HC

O-33 No relief to litigant without clean hands 1 case

A petitioner who withholds material facts and obtains an interim order by painting a false picture is not entitled to discretionary relief.

SCJ-225 · Raman Ispat (Pvt.) Ltd. & Anr. 2009 All HC

O-34 No writ at calculation sheet stage raise objection before EE 1 case

A writ at the proposed-assessment / calculation-sheet stage is not entertained; the consumer is relegated to file objection before the Executive Engineer, the calculation sheet being only a call for his response. Same objection-stage / relegation line as SCJ-1270, SCJ-1271, SCJ-032.

SCJ-1566 · Krishna Kumar Sharma 2018 All HC

O-35 No writ restoration where connection alleged fraudulent and subjudice 1 case

The writ court will not restore an electricity connection under Article 226 where it is seriously alleged, in pending proceedings, to have been obtained by forged/fraudulent documents; the remedy is a fresh application or the outcome of the criminal case.

SCJ-194 · Dhyanendra Singh 2016 All HC

O-36 **Part deposit stay of recovery without prejudice** 1 case

Recovery under the citation was stayed on a part-deposit (Rs.35,000 against Rs.75,220) without prejudice to the parties' rights; the interim indulgence did not entitle the petitioner to a merits adjudication in the writ.

SCJ-1270 · Ram Charan 2015 **All HC**

O-37 **Premature writ against provisional s.126 assessment** 1 case

The Court refused to entertain a writ against a provisional assessment notice under Section 126(2), holding the challenge premature and relegating the consumer to file a detailed objection which the assessing authority could modify, confirm or discharge.

LEAD AUTHORITIES *GKN Driveshafts (India) Ltd. v. Income Tax Officer & Ors.*

SCJ-1060 · Rukmani Ferro Pvt. Ltd. 2011 **All HC**

O-38 **Protective condition on load enhancement does not override court stay** 1 case

A bank-guarantee condition that operates only because the consumer voluntarily sought enhanced load does not nullify or override the court's stay of the underlying assessment.

LEAD AUTHORITIES *Cauvery Water Disputes Tribunal, In re*

SCJ-255 · Suvidha Engineers India Ltd. 2009 **All HC**

O-39 **Recall of order requires disclosed statutory basis** 1 case

An assessing officer who withdraws/recalls a demand order during pending litigation must disclose the statutory power (under the Electricity Act or Supply Code, 2005) exercised to do so; failure to do so is prima facie misconduct.

SCJ-092 · Navi Hasan 2022 **All HC**

O-40 **State instrumentality frivolous litigation costs** 1 case

A State-owned licensee filing a meritless writ against its own correct billing determination is liable to costs, recoverable from the officials responsible for advising the filing.

SCJ-261 · Kanpur Electricity Supply Co. Ltd. a... 2011 **All HC**

O-41 **Third exception writ jurisdictional review on merits** 1 case

Where full arguments on the underlying theft assessment have already been made and the 'without jurisdiction' exception is invoked, the Court may examine the record on merits (checking report, MRI report) to see if the assessment is patently illegal, rather than mechanically relegating to the s.127 appeal; physical/MRI indicators of direct extraction, even without a red-handed catch, satisfy Ashok Kumar's notice-of-manner requirement.

LEAD AUTHORITIES *Ashok Kumar & Others v. State of U.P. & Others*

SCJ-051 · Beeco Electrical India & Anr. 2012 **All HC**

O-42 **Voluntary payment forecloses coercion plea** 1 case

A compounding/assessment amount paid without protest or contemporaneous objection cannot later be assailed as realised under coercion.

SCJ-003 · Abhinav Seva Sansthan Mahavidyalaya 2011 **All HC**

O-43 **Voluntary payment under undertaking not refundable absent express direction** 1 case

A consumer who voluntarily pays disputed dues as a condition for obtaining a benefit (here, a fresh connection), pursuant to its own undertaking, cannot later claim a refund based on a subsequent regulatory order that merely restrains future demands, absent an express refund direction — the payment remains refundable only per the terms of the original undertaking.

SCJ-099 · Paschimanchal Vidyut Vitran Nigam Lt... 2008 **SC**

O-44 **Writ court defers to supply code adjudicatory mechanism** 1 case

Reinforces that challenges to Supply Code assessments should ordinarily proceed through the Code's own adjudicatory mechanism rather than direct writ adjudication on the merits, with interim reconnection conditioned on partial deposit — a recurring pattern in this corpus's disconnection/reconnection interim-relief cluster.

SCJ-143 · Vimal Gupta 2017 All HC

P. Criminal process, compounding & s.482 11 principles · 57 case-applications

Arrest safeguards, FIR, compounding, summoning, and inherent-power quashing.

P-01 S.135 arrest safeguards and compounding remedy 43 cases

A cognizable s.135 FIR will not be quashed, but arrest must comply with Cr.P.C. s.41(1)(b)/41-A safeguards where the offence carries under 7 years, and a compoundable s.135 offence's remedy lies via the Supply Code/s.152 route rather than quashing.

LEAD AUTHORITIES *Arnesh Kumar v. State of Bihar*; *Md. Asfak Alam v. State of Jharkhand*

SCJ-1086 · Mohd. Rashid 2014 AII HC	SCJ-1087 · Tinku Bhati alias Tinku Singh 2014 AII HC	SCJ-1088 · Riyazuddin 2014 AII HC
SCJ-183 · Santosh Pathak 2014 AII HC	SCJ-1089 · Alok Kumar Mishra 2014 AII HC	SCJ-1090 · Latoori Singh 2014 AII HC
SCJ-180 · Jalaluddin 2014 AII HC	SCJ-185 · Kanchan Singh 2014 AII HC	SCJ-186 · Santosh Pathak 2014 AII HC
SCJ-1091 · Nityanand Prajapati 2014 AII HC	SCJ-1092 · Rakesh Kumar Shukla 2014 AII HC	SCJ-1094 · Vinay Pandey 2014 AII HC
SCJ-1098 · Ikram 2014 AII HC	SCJ-1099 · Suresh Singh Sengar 2014 AII HC	SCJ-1101 · Mahboob 2014 AII HC
SCJ-1102 · s.135 FIR not quashed; CrPC 41/41-A ... 2014 AII HC	SCJ-1105 · Brij Mohan 2014 AII HC	
SCJ-184 · A.K. Dixit @ Avdhesh Kumar Dixit 2014 AII HC	SCJ-1108 · Magister Tiwari @ Uday Pratap Tiwari 2014 AII HC	
SCJ-1110 · Suresh 2014 AII HC	SCJ-1111 · Awadhraj 2014 AII HC	SCJ-1112 · Ashok Kumar Gupta 2014 AII HC
SCJ-1114 · Sharafat 2014 AII HC	SCJ-1118 · Kripa Shanker @ Kripal Pathak 2014 AII HC	SCJ-1122 · Leelawati Sharma 2014 AII HC
SCJ-1123 · Parvez 2014 AII HC	SCJ-1124 · Ajit Singh 2014 AII HC	SCJ-1125 · Manish Sharma 2014 AII HC
SCJ-1127 · Mangal Singh 2014 AII HC	SCJ-1131 · Avdhesh 2014 AII HC	SCJ-1136 · Chanda Devi 2015 AII HC
SCJ-1308 · Mohammad Ali 2015 AII HC	SCJ-081 · Mobin Ahamad 2015 AII HC	SCJ-082 · Mohamad Aslam 2015 AII HC
SCJ-1309 · Sunil Kumar Pal 2015 AII HC	SCJ-1310 · Rajendra Kumar @ Raju 2015 AII HC	
SCJ-1313 · Husain Ameer @ Bade Miyan 2015 AII HC	SCJ-1315 · Vijay 2015 AII HC	SCJ-1295 · Jagdish Kaushik 2015 AII HC
SCJ-1300 · Suman Devi 2015 AII HC	SCJ-1301 · Meena Verma 2015 AII HC	SCJ-1304 · Babu Ram 2015 AII HC
SCJ-340 · Anuradha 2025 AII HC		

P-02 Section 482 sparingly at pre trial stage 4 cases

Section 528 BNSS treated as the inherent-power vehicle. The Court restated that s.482 Cr.P.C. at the pre-trial stage is used sparingly, not to appreciate evidence or try disputed defences, and dismissed the application because the FIR, statements and charge-sheet disclosed a prima facie ss.409/420 embezzlement case after departmental enquiry. Same cluster as SCJ-173, SCJ-142.

LEAD AUTHORITIES *State of Haryana v. Bhajan Lal*; *M/s Neeharika Infrastructure Pvt. Ltd. v. State of Maharashtra*; *R.P. Kapur v. State of Punjab*; *State of Bihar v. P.P. Sharma*; *Zandu Pharmaceutical Works Ltd. v. Mohd. Saraful Haq*; *Manik B. v. Kadapala Sreyes Reddy*

SCJ-665 · Ashok Garg 2017 AII HC	SCJ-173 · Shailendra Kumar 2019 AII HC	SCJ-539 · Syed Avesh Ahmad 2024 AII HC
SCJ-343 · Natthi Prasad 2025 AII HC		

P-03 Compounding fee does not extinguish civil consumption dues 2 cases

Payment of a s.152(3) compounding fee for theft is distinct from, and does not extinguish, the consumer's separate civil liability for electricity actually consumed; recovery notices for consumption dues survive compounding — a companion principle to this corpus's theft/126 procedural-strictness line, clarifying that compounding addresses only the criminal offence.

SCJ-095 · Om Prakash s/o Gauri Shankar 2006 AII HC	SCJ-208 · Om Prakash 2006 AII HC
--	----------------------------------

P-04 No theft finding subject to special court civil liability s.154 1 case

Even a finding of 'no theft' by the appellate authority remains subject to the Special Court's determination of civil liability for theft under Sections 154(5)-(6) read with Sections 153 and 155; the licensee's revenue interest being thereby protected, the finding is no ground to interfere in writ.

SCJ-1059 · Paschimanchal Vidyut Vitran Nigam Lt... 2010 AII HC
--

P-05 S.135 1 clauses are definitional not separate offences 1 case

s.135(1)(a)–(e) define theft and share one punishment; omitting the sub-clause from the FIR/charge-sheet/cognizance is not fatal if the narration is complete.

SCJ-278 · Satish Kumar Bharti alias Chhotu 2026 All HC

P-06 S.135 1A 24 hour FIR is mandatory 1 case

The 24-hour police-complaint rule in s.135(1-A) second proviso, reinforced by Clause 8.2 of the Code and s.57 consequences, is mandatory; a theft FIR lodged four days after inspection vitiates the criminal case. Indresh Patel (DB, directory) is treated as per incuriam; Varun Kumar Yadav (coordinate Bench; SLP pending) is followed.

LEAD AUTHORITIES *Varun Kumar Yadav v. State of U.P. & Others; Indresh Patel @ Indreshwar Singh v. State of U.P. & 4 Others; Dr. Arun Kumar v. Nagar Nigam, Bareilly*

SCJ-278 · Satish Kumar Bharti alias Chhotu 2026 All HC

P-07 S.135 2 authorised officer competent to lodge FIR 1 case

An officer of a distribution licensee authorised under s.135(2) is competent to lodge an FIR for theft of electricity under s.135(1); this authority is not displaced by unproven allegations of malafide timing.

LEAD AUTHORITIES *State of Haryana v. Bhajan Lal*

SCJ-102 · Pawan Kumar Laur 2011 All HC

P-08 S.135 summoning need not examine mens rea 1 case

At the Section 204 CrPC stage, a court summoning under ss.135/138 need not examine whether the act was dishonest. Section 39 of the repealed 1910 Act and Ram Chandra Prasad Sharma do not apply. Intention, if it emerges, is for trial.

SCJ-637 · Joginder Singh 2010 All HC

P-09 S.138 reconnection offence distinct from billing dispute 1 case

Prosecution for unauthorised reconnection under s.138 is independent of any billing/arrears dispute under Chapter 6 of the Code; a favourable consumer-forum order on a bill does not bar the s.138 prosecution.

SCJ-173 · Shailendra Kumar 2019 All HC

P-10 S.141 director liability summoning stage not for quashing 1 case

Company-director liability under s.141 NI Act (whether the accused was 'in charge of and responsible for' the company's business) is ordinarily determined at trial; sufficient prima facie averments in the complaint preclude quashing at the summoning stage.

LEAD AUTHORITIES *Sunil Bharati Mittal v. CBI; SMS Pharmaceuticals Ltd. v. Neeta Bhalla*

SCJ-132 · Sunil Todi & Ors. 2021 SC

P-11 S.151 does not exclude FIR and charge sheet 1 case

Unamended section 151's complaint route does not exclude FIR, investigation or a police charge-sheet for section 135. Following Vishal Agrawal, Cr.P.C. procedure governs; a charge-sheet for theft of electricity is competent.

LEAD AUTHORITIES *Vishal Agrawal v. Chhattisgarh State Electricity Board*

SCJ-665 · Ashok Garg 2017 All HC

Q. Adjacent & miscellaneous 5 principles · 8 case-applications

Doctrines that sit beside the Code: arbitration, departmental inquiry, and residual.

Q-01 Natural justice in departmental inquiry 3 cases

In a major-penalty inquiry charges are not self-proving. The Establishment must lead documentary and oral evidence through a Presenting Officer before an impartial inquiry committee; documents annexed to the charge-sheet are not evidence unless formally proved in the delinquent's presence. A namesake date of appearance, with no later date fixed, does not satisfy that procedure. Same cluster as SCJ-017 and SCJ-548.

LEAD AUTHORITIES *State of Uttar Pradesh v. Saroj Kumar Sinha*; *Roop Singh Negi v. Punjab National Bank*; *State of Uttaranchal v. Kharak Singh*; *State of U.P. v. Saroj Kumar Sinha*

SCJ-548 · Umesh Chandra Verma 2024 All HC

SCJ-017 · Dharendra Kumar Chaudhary 2024 All HC

SCJ-549 · Tarun Kumar Pathak 2024 All HC

Q-02 Hazardous activity strict duty 2 cases

Electricity distribution is a hazardous activity; the licensee is under a statutory duty to maintain its installations and lines so that passers-by (human or animal) are not harmed.

LEAD AUTHORITIES *Shakuntala Devi v. Delhi Electric Supply Undertaking*

SCJ-025 · Executive Engineer, Electricity Dist... 2018 All HC

SCJ-019 · Divisional Engineer, Electricity Dis... 2018 All HC

Q-03 Damages for licensee delay under para 7 7 2 1 case

Concurrent DCGRF and Electricity Ombudsman findings of delay and laches justify damages under paragraph 7.7.2 of the Supply Code, 2005; Article 226 interference is refused absent an error apparent on the record. Same paragraph 7.7 cluster as SCJ-261 and SCJ-700.

SCJ-1265 · Kanpur Electricity Supply Company Lt... 2011 All HC

Q-04 Prior judicial admission of alias bars mistaken identity defence 1 case

A consumer's own prior judicial admission (in a separate proceeding) that a disputed name is his alias precludes a later mistaken-identity defence against a recovery citation issued in that name — an evidentiary/estoppel point in the theft-recovery enforcement context.

SCJ-144 · Vinay Kumar Singh 2020 All HC

Q-05 S.11 confined to existence of arbitration agreement 1 case

A Section 11 court does not decide whether a Supply Code penalty must go to the Clause 7.10 CGRF/Ombudsman; it only asks whether an arbitration agreement exists, leaving the Code-forum objection to the arbitrator.

LEAD AUTHORITIES *M/S Mayavati Trading Pvt. Ltd. v. Pradyut Deb Burman*; *Duro Felguera, S.A. v. Gangavaram Port Ltd.*; *GOQII Technologies Pvt. Ltd. v. Sokrati Technologies Pvt. Ltd.*

SCJ-274 · Ambuja Cements Limited 2026 All HC

A–Z index of principles 338 tags · letter is the subject class

Look up a doctrine by name; the letter points to the class above.

J	126 v. 135 distinct fields	5	H	Billing objection to executive engineer under 6.5	29	G	Clause 5.6 meter testing required before missing meter assessment	1
J	126 v. 135 distinct fields but 126 still applies to theft	1	J	Burden on licensee to prove unauthorised use	1	G	Clause 5.6d meter testing procedure mandatory for theft finding	3
O	Acquiescence cuts both ways	1	M	CGRF jurisdiction covers billing and tariff disputes	2	H	Clause 6 15b read with Section 56 not independent limitation	1
F	Additional security	1	M	CGRF no jurisdiction over transmission line accident property loss	1	H	Clause 6.12 governs bill payment appropriation not duty refund	1
F	Additional security default does not bar load factor rebate	1	M	CGRF ombudsman no jurisdiction over s.126	1	H	Clause 6.15 two year bar mandatory licensee duty to act	5
F	Additional security is not dues Clause 4.49 not attracted	3	M	Change of forum not mere procedure	1	H	Clause 6.15 two year limitation relegated to authority	1
O	Alternate remedy and laches bar writ	1	E	Change of site of sanctioned load not permitted 4.8(d)	1	H	Clause 6.5 objection must be in proper form	3
N	Alternate remedy Section 127 appeal bars writ	2	F	Charge follows actual use	1	H	Clause 6.5b quantification dispute	2
O	Alternative remedy efficacious absent onerous predeposit	1	F	Charge requires consumer option	1	J	Clause 6.8 hearing procedure mandatory before UUE conclusion	16
O	Alternative remedy not a bar after long pendency	2	F	Charitable institution free or subsidised service tariff Invv 4a	1	M	Clause 7.10 forum ombudsman route for billing grievances	27
O	Alternative remedy relegation	14	G	Check meter and substation readings relevant to theft assessment	1	K	Clause 8.1 8.2 govern theft assessment not 6.8	1
O	Amendment allowed does not mean prayer allowed	1	G	Check meter procedure on consumer request	1	K	Clause 8.1b personal hearing mandatory before final assessment	2
N	Appellate authority cannot exceed limited remand	1	M	Civil court barred s.145 for s.126 assessment	1	K	Clause 8.1b theft notice natural justice	2
N	Appellate authority must give reasons for disagreeing with acquittal	1	E	Clause 3.4a covers enhancement not just new connections	1	K	Clause 8.2x acquittal requires withdrawal of theft assessment	5
O	Approbate and reprobate bars selective repudiation	3	E	Clause 3.4a independent feeder list is restrictive not illustrative	1	J	Clause 9.3 service mode prerequisite to treating assessment final	3
C	Arrears apportioned pro rata on subdivision	1	E	Clause 3.4d tapping conditions govern both 3.4a and 3.4b	1	A	Clause heading not a limit on substantive scope	3
C	Arrears bar is premises specific	1	E	Clause 3.4d tapping exception where independent feeder infeasible	1	O	Clean hands required material concealment bars writ	2
C	Arrears follow premises not person ada allotment context	1	H	Clause 4.14g paid final bill bars further demand	1	A	Code confined to licensee consumer service obligations	1
C	Arrears follow premises not person fresh connection v. transfer	4	G	Clause 4.15 HT/EHT independent entry to meter	1	M	Code forum not for tortious damages	3
C	Arrears run with the premises	13	C	Clause 4.3 f vi landlord co extensive liability for tenant dues	1	A	Code liberally construed for consumer	2
J	Assessment final by consumer acceptance	1	I	Clause 4.37 4.38 licensee empowered to permanently disconnect	5	L	Collection charges only on tehsil recovery not direct deposit	1
J	Assessment must be by EE distribution not EE revenue	2	C	Clause 4.3f co extensive liability not confined to private sale	2	L	Collection charges waived on timely payment under instalment order	1
J	Assessment must engage objections with reasons	3	C	Clause 4.3f director liability not retrospective and requires exhaustion of company assets	1	F	Commission alone determines tariff overrides contract	2
J	Assessment service must be proved else non receipt presumed	3	B	Clause 4.4 occupant connection on indemnity bond	11	P	Compounding fee does not extinguish civil consumption dues	2
C	Auction purchaser liable for predecessor dues as is where is	1	C	Clause 4.44 failure to mutate keeps recorded consumer liable	1	G	Connection must be released with a meter	1
J	Audi alteram partem for demand assessment orders	2	F	Clause 4.49 intra vires protective not recovery	1	C	Connection transfer requires clearance of arrears Clause 4.44	2
K	Authority to assess theft under Clause 7.3	1	E	Clause 4.5d landowner objection to supply line	5	O	Consumer cannot blame licensee for consequences of own delay	1
M	Bill correctness under Clause 6.5 not CGRF or ombudsman	2				M	Consumer forum lacks jurisdiction over s.126 s.135 140 matters	2
G	Billing must follow actual meter reading	1						

D	Corporate debtor liability distinct from director guarantor liability	1	K	Final assessment requires hearing and finding of theft	1	J	Law as of final assessment date	1
O	Cost on electricity department for casual non compliance	1	L	Final s.126 assessment mandatory precondition to recovery citation	5	A	Legal fiction carried to logical end	1
O	Cost on frivolous state instrumentality litigation	1	H	First due on billing not consumption	2	F	Legal profession not commercial activity for tariff	1
K	Criminal acquittal does not extinguish electricity assessment	1	F	Franchisee is agent of licensee not directly regulable	1	H	Licensee bears burden of proving retained charges	1
F	Cross subsidisation of franchisee input rate not per se unlawful	1	H	Fresh bill distinguished from supplementary bill for s.56(2)	1	F	Licensee cannot alter commission determined tariff	10
Q	Damages for licensee delay under para 7 7 2	1	C	Fresh connection to auction purchaser free from encumbrances	1	F	Licensee circular cannot override commission tariff order	1
I	Deemed disconnection does not bar theft assessment in writ	1	L	Fresh recovery arbitrary while representation pending	1	H	Licensee demand on paid bills requires shown provision	3
G	Defective meter not per se theft distinct assessment regime	2	C	Government shareholding does not make licensee dues government dues	1	B	Licensee duty to maintain supply and avoid imbalance	1
O	Delay laches bar similarly situated claim	1	Q	Hazardous activity strict duty	2	N	Licensee must redirect misaddressed appeal to appellate authority	1
L	Demand notice on provisional assessment is illegal	1	D	IBC liability crystallises at resolution plan effective date	1	B	Licensee performs installation consumer cannot self supply	1
I	Direction to consider reconnection subject to clearing dues	1	D	IBC moratorium does not cover personal guarantor directors	1	C	Lifting corporate veil to fix arrears liability	1
C	Director liability for company dues subordinate to company assets	1	D	IBC s.238 overrides electricity act recovery mechanism in liquidation	1	F	Load reduction stands approved on licensee decision only ministerial steps left	1
C	Director not personally liable for company electricity dues	1	D	IBC s.238 overrides sector statutes	3	M	Lok adalat cannot direct action contrary to code	1
I	Disconnection barred but recovery not	1	G	Impossibility exception outside meter billing	1	H	LPS not leviable absent consumer default	1
I	Disconnection not for landlord tenant dispute	3	E	Independent feeder original consumer consent	3	J	Malice in law vitiates s.126 assessment on fabricated report	1
O	Disputed questions of fact not adjudicable under article 226	8	E	Independent feeder tapping not shared substation determines status	1	O	Mandamus cannot override statutory distribution scheme	2
B	Duty to supply survives extinguishment of right to recover	4	G	Independent lab testing only if conclusion rests on test report	1	G	Mandatory pretesting notice final by SLP dismissal	1
C	Electricity arrears not a charge transferee liable only under statutory rules	3	M	Individual grievance via s.42 not commission	2	A	Marginal heading not aid to construction	1
C	Electricity dues contractual not charge on premises	1	H	Installment payment Clause 6.14	19	F	MCG waiver barred if dues pending	1
C	Electricity dues not automatically a secured interest	2	H	Instalment facility Clause 6.14 for financial distress	18	B	Mere signature on application is not consent	1
C	Electricity dues statutory character clearance condition not unreasonable	1	H	Interest corollary of retention	1	M	Meter correctness dispute referred to electrical inspector	1
M	Electricity ombudsman not appellate authority nor tribunal	1	O	Interim connection on bank guarantee for disputed arrears	1	G	Meter dispute must exhaust Clause 5.6 before writ	4
E	Estimate departmental delay cannot shift feeder or force fresh estimate	1	O	Interim order lapses on expiry	1	C	Meter holder liable notwithstanding tenant in occupation	1
L	Ex parte s.126 assessment requires hearing before recovery	1	O	Interim protection preserving pre existing uninterrupted supply	1	G	Meter manufacturer testing not independent	3
H	Excess duty realised must be adjusted against current bill	1	O	Interim restoration on part payment pending assessment challenge	1	G	Meter reading dispute Clause 6.5	4
J	Excess load not unauthorised use	1	O	Interim restoration on security pending fresh assessment	2	G	Meter removed without objection loses right to dispute	1
N	Exorbitant assessment makes appeal remedy onerous	1	O	Interim stay of final assessment on part deposit	1	G	Meter testing venue option must be offered before sealing	2
J	Final assessment order mandatory under Section 126 3	1	O	Interim stay of theft assessment on bank guarantee of half	1	F	Minimum charges only if consumer at fault	1
N	Final assessment order relegates assessee to Section 127 appeal	2	C	Isha marbles distinguishable where auction clause covers dues	1	M	Mixed feeder not independent feeder ombudsman cannot override code	1
			B	Landlord consent not required for tenant connection s.43	3	Q	Natural justice in departmental inquiry	3
			B	Landlord NOC refusal in dispute no bar to tenant connection	1	K	New connection independent of undetermined theft assessment	1
			A	Law as of application date governs	1			

G	No billing on basis of check meter	1	H	One time settlement finality	1	J	Provisional assessment must state basis and amount	1
F	No charge when supply fails by licensee fault	1	J	Opportunity before final assessment	19	J	Provisional assessment power vests in executive engineer	1
L	No coercive action until final assessment	1	J	Overdrawal is unauthorised use regardless of tariff change or revenue loss	1	K	Reasonable opportunity theft assessment	2
I	No disconnection power for UUE only for theft	1	L	Own installment offer forecloses quashing of recovery	1	F	Reasonable return via sixth schedule reverse application	1
L	No double recovery of arrears already realized from erstwhile owner	1	O	Own wrong maxim	2	O	Recall of order requires disclosed statutory basis	1
N	No final order defeats Section 127 appeal	1	B	Owner consent mandatory for new connection Clause 4.4	1	I	Reconnection available after permanent disconnection Clause 4.39	2
I	No free consumption disconnection for non payment	1	B	Owner consent precondition Clause 4.15vi bihar code	2	L	Recovery citation kept in abeyance pending fresh objection	1
O	No mandamus to enforce order without jurisdiction	1	C	Owner lessor liable for electricity dues despite third party operation	1	L	Recovery must be withdrawn not merely deferred on set aside	1
O	No negative equality in electricity supply decisions	1	K	Owner liable as consumer for theft regardless of tenancy claim	1	L	Recovery must rest on final assessment order	1
L	No objection to provisional assessment validates recovery	1	E	Owner objection to supply requires dm permission rule 3b	1	L	Recovery objection goes to assessing authority not executing tehsildar	1
O	No promissory estoppel against statute	1	K	Owner of premises is consumer liable for theft assessment	2	N	Recovery of assessment stayed pending s.127 appeal	4
L	No recovery without final assessment Clause 8.1(b)	4	E	Para 4.29 service line cannot bypass Clause 3.4 independent feeder conditions	1	J	Registered post to recorded address deemed sufficient service	1
O	No relief to litigant without clean hands	1	O	Part deposit stay of recovery without prejudice	1	F	Regulator cannot change rules at truing up	1
A	No retrospective operation of supply code clause	1	B	Pending private dispute no ground to deny supply	1	O	Relegate to statutory remedy	22
H	No series of provisional bills without statutory basis	1	M	Permanent lok adalat jurisdiction over public utility electricity grievance	1	N	Relegation to Section 127 appeal on merits limitation not examined	1
P	No theft finding subject to special court civil liability s.154	1	M	Permanent lok adalat no adjudicatory jurisdiction over theft offence	1	D	Relief undertaking notification stays recovery	1
F	No UPERC approval needed for licensee load reduction	1	M	Plea of jurisdiction can be raised at any stage	1	D	Resolution plan clean slate extinguishes pre CIRP dues	1
O	No writ at calculation sheet stage raise objection before EE	1	D	Pre CIRP electricity dues recoverable only under Section 53 waterfall	2	D	Resolution plan extinguishes pre CIRP electricity dues clean slate	2
N	No writ interference with s.127 appellate quantum	1	A	Precedent under superseded provisions does not govern post 2005 code	1	I	Restoration of connection on furnishing bank guarantee	1
O	No writ restoration where connection alleged fraudulent and subjudice	1	O	Premature writ against provisional s.126 assessment	1	O	Right to electricity Art. 21	2
E	Not a consumer qua transmission lines s.2(72)	1	L	Premises definition scope of recovery	1	Q	S.11 confined to existence of arbitration agreement	1
I	Notice required before permanent disconnection	1	E	Premises is area for which connection sanctioned Clause 2.2(ss)	1	J	S.126 assessing officer must personally inspect	1
J	Objection to competence decided by assessing authority	1	G	Prepayment meter exemption conditional on availability	1	J	S.126 assessment available for theft unauthorised use covers theft	1
B	Occupier entitled to connection on indemnity bond	3	L	Prescribed authority must be notified under 1958 act	1	J	S.126 final assessment attaining finality cannot be reopened except fraud	1
B	Occupier must be authorised	1	F	Pricing governed by tariff order not supply code	1	J	S.126 final assessment delay requires fresh hearing	1
B	Occupier needs proof of occupancy plus indemnity bond Clause 4.4	2	Q	Prior judicial admission of alias bars mistaken identity defence	1	J	S.126 procedural strictness notice and hearing	10
M	Ombudsman award challengeable only on s.34 arbitration grounds	2	J	Proper service of provisional assessment notice Clause 6.8	2	J	S.126 theft overlap requires quasi criminal procedural rigour	1
M	Ombudsman cannot direct contrary to act and code	9	O	Protective condition on load enhancement does not override court stay	1	J	S.126 two stage hearing UUE conclusion then quantum	4
M	Ombudsman cannot withdraw unappealed CGRF relief	1	J	Provisional and final assessment cannot be simultaneous	1	N	S.127 appeal lies only against final order not provisional assessment	1
M	Ombudsman may infer defective meter from consumption pattern	1						
M	Ombudsman remedy consumer only	2						

N	S.127 appellate authority must exercise independent judgment	4	K	Section 56 2 two year bar inapplicable to theft	1	F	Tariff interpretation is not a jurisdictional question	1
N	S.127 appellate power co extensive competent to decide theft	1	F	Security cheque matures on accrual of underlying debt	1	F	Tariff no retrospective effect	2
P	S.135 1 clauses are definitional not separate offences	1	F	Security deposit is advance payment not debt	3	J	Tariff under s.126 6 includes both fixed and energy charges	1
P	S.135 1A 24 hour FIR is mandatory	1	F	Security v. debt characterisation is a triable defence	1	F	Temporary supply classified by purpose not duration	1
P	S.135 2 authorised officer competent to lodge FIR	1	F	SERC mandatory legal member not mandatory judicial chairperson	1	J	Theft assessment is under s.126 appealable s.127	3
P	S.135 arrest safeguards and compounding remedy	43	J	Set aside assessment is non est fresh reasoned order required	2	K	Theft cannot rest on mere possibility	5
P	S.135 summoning need not examine mens rea	1	D	SICA scheme binds participating licensee	1	K	Theft must be established not presumed	3
P	S.138 reconnection offence distinct from billing dispute	1	D	Sick relief undertaking cannot be billed at pre reduction load	1	K	Theft UUE enforced via code	2
P	S.141 director liability summoning stage not for quashing	1	D	Sick unit protective treatment	1	O	Third exception writ jurisdictional review on merits	1
P	S.151 does not exclude FIR and charge sheet	1	E	Single point to multipoint requires 51 percent consumers	1	H	Two year limitation recovery of electricity arrears	1
M	S.26 6 confined to meter correctness not bill disputes	1	G	Slow meter difference only three months Clause 5.6cii	1	J	Unauthorised connected load detected in excess of sanction is assessable	1
M	S.26 6 inapplicable to fraud tampering disputes	1	G	Slow metering assessment inconsistent with parallel theft prosecution	1	A	Unilateral acceptance of successor code estops challenge to predecessor	1
B	S.43 duty to supply owner or occupier correlative right	1	O	State instrumentality frivolous litigation costs	1	J	UUE assessment at 1.5x tariff not thrice	7
F	S.47 4 interest on security at bank rate from enactment	2	A	Statute prevails over supply code	3	J	UUE period 365 days is fallback not default	2
H	S.56 2 two year bar not retrospective to pre 2003 act liabilities	1	A	Statutory contract silence does not bar statutory power	1	N	Vested right of appeal at initiation	1
H	S.56(2) bar does not apply to continuing regular bills	1	M	Statutory forum cannot relegate to arbitration	1	A	Vires challenge requires pleaded foundation	1
H	S.62 6 interest only for overcharging not delayed rebate	1	A	Statutory supply code supersedes administrative memorandum	1	O	Voluntary payment forecloses coercion plea	1
E	S.67 line over objecting owner land alternative or permission	1	H	Sum first due means when bill actually raised	1	O	Voluntary payment under undertaking not refundable absent express direction	1
A	Sc precedent retrospective unless expressly prospective	1	A	Supply code not confined to s.50 subjects s.181 rulemaking	1	O	Waiver requires full knowledge of right	2
J	Search seizure of UUE gadget under clauses 4.33 4.34	1	A	Supply code read as whole not piecemeal	1	O	Want of prosecution dismissal vacates interim stay	2
N	Section 127 6 interest 16 percent compounded semiannually	1	A	Supply code regulation cannot exceed parent act s.174 overriding	4	O	Whirlpool exceptions to alternative remedy bar	6
D	Section 238 IBC overrides supply code Clause 4.3f	2	J	Supply code regulation cannot exempt from s.126 liability ultra vires	1	F	Withdrawn load factor rebate is a recoverable due	1
D	Section 32a protects corporate debtor property pre CIRP	1	K	Surcharge v. theft penalty distinction	1	O	Writ court defers to supply code adjudicatory mechanism	1
P	Section 482 sparingly at pre trial stage	4	E	Tapping allowed if feasible and original supply unaffected	1	O	Writ dismissed as infructuous with liberty to move afresh	2
						O	Writ will not adjudicate bill if undisputed part unpaid	2